



President's Column

AP-LS: A Professional Mosaic That Works

Gail Goodman

The American Psychology Law Society (AP-LS) is a network of scientists, practitioners, policy analysts, attorneys, and others who share interests in psychology and law. We have a proud history and an exciting future. In all respects, we have been incredibly successful as a society and APA division.

Why does AP-LS work so well? AP-LS is unique in bringing together a diverse group of professionals joined by common interests. We do not necessarily share the same focus: some of us are mainly involved in practice, others in research, and still others in policy. We do not necessarily share the same training: Many of us are psychologists and/or attorneys, but others are judges, teachers, political scientists, psychiatrists, or even Secret Service agents. We work in different contexts and settings, such as in universities, the criminal justice system, foundations, clinics, or private practice, and sometimes on behalf of different constituencies. And we live in different countries, including Germany, Spain, Canada, South Africa, The Netherlands, and Australia. Nevertheless, we are bound by a common interest in truth, justice, and the human mind. The commonalities, tensions, and diversity inherent in our organization work well to create a stimulating mix. In this Presidential column, I want to highlight accomplishments of the year, activities in progress, and plans for the future.

1997 APA Convention in Chicago

Ira Packer (Forensic Health Services, Massachusetts) and Edie Greene (University of Colorado, Colorado Springs), co-chairs of the 1997 APA program committee, deserve many thanks for putting together an exciting program. Two themes are featured this year by APA. One theme is the Gala Celebration of Divisions in honor of the establishment of APA divisions 50 years ago. Margaret Coggins and Marisa Pyncheon, psychologists employed at the US Secret Service, are coordinating Division 41's activities.

As part of the celebration, there will be an anniversary party free to all who are registered at the convention. Fitting with the theme, Mark Small has organized a symposium on the History of Psycholegal Scholarship that will include papers by Tom Grisso (University of Massachusetts), Sol Fulero (Sinclair College), and Larry Wrightsman (University of Kansas). (Sol Fulero is also writing a history of Division 41 that will be published in an APA Publications book.) Each division was encouraged to invite luminaries in their respective fields to speak. Two psychology-law luminaries who will provide invited addresses are John Monahan (University of Virginia) and Gary Melton (University of South Carolina).

A Division Fair will be held on August 17, which will be an all-day event. Thanks to Member at Large Pam Casey (Center for State Courts), our booth at the fair will feature Division 41 materials (e.g., books, journals, career information, psych-law course syllabi). Even T-shirts with the AP-LS logo will be on sale there.

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Our social hour at the convention will also carry through with the Gala Celebration theme. We have ordered a plaque, paid for by APA, that will include the names of all past presidents of Division 41. The plaque, which will be on display at the social hour, will eventually be housed at APA headquarters in Washington, DC. We want to invite all past presidents to attend and to be honored at the social hour.

The second APA theme concerns racism. Each division was invited to sponsor symposia dealing in some way with this pernicious problem. Melissa Warren (American Psychological Association) will chair our division symposium on racism. Her symposium deals with ethnic minorities in prison.

In addition to organizing activities to correspond to the two APA themes, we have invited a number of speakers and symposia this year: For instance, Susan Limber (University of South Carolina) will give an invited address as the winner of the Saleem Shah Award, which was bestowed this year for policy work; Bette Bottoms (University of Illinois, Chicago) will speak on ritual abuse, therapeutic practices, and repressed memories; Edie Greene (University of Colorado, Colorado Springs) will chair a symposium on capital punishment, Alan Goldstein will give an invited address as the recipient of the American Academy in Forensic Psychology Award for Distinguished Contributions, and Mitchell Eisen (Mt. Sinai Medical Center) will chair a symposium on suggestibility in children's testimony. There will be many other talks and activities, of course, and I hope Division 41 members will make special efforts to attend them.

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AP-LS Biennial Conference In Redondo Beach, CA

Thanks to Beth Wiggins (Federal Judicial Center) and Melissa Warren (American Psychological Association), our two program chairs, we are set for the next AP-LS Biennial Conference, to be held March 5 - 7, 1998. We have secured a wonderful location and hotel for the conference. The location is the marina in Redondo Beach, CA. When I visited the hotel in January, I could see Catalina Island from my room, and in March, we may be able to see whales saunter by. The hotel adjoins a Gold's Gym, has an outdoor deck for a conference luncheon, and boasts a fabulous view of the southern California coastline. There are numerous restaurants nearby, and for those who don't mind a short drive (i.e., about 15 minutes), one can easily dine at some of the excellent Santa Monica restaurants as well. At the last Biennial meeting, many of you completed a survey concerning your priorities for conference sites. One of the top priorities was a reasonably priced hotel. Another was a warm location and proximity to a major airport. We tried to accommodate these preferences (New Orleans was problematic in part due to the high and intractable cost of hotels.)

Look for the Biennial Conference Call for Papers in this newsletter. We welcome submissions from everyone interested. In addition, President-Elect Jack Brigham (Florida State University) and I plan to invite a number of distinguished scientists to present their research and organize symposia. There is room for many more presentations, and we hope you will help us make the conference an electrifying event.

EC Meeting: The Future of AP-LS and More

Each year in early Spring, the EC meets to attend to division business. Our EC meeting this year was held in San Francisco; the minutes of which appear in this newsletter. One item on the EC meeting agenda was to begin a discussion of The Future of AP-LS. It seems time to take stock, reflect on our past and present, and plan for the future. The EC is considering holding a retreat for the purpose of in-depth discussion of future directions for our division. We are also discussing the possibility of sponsoring a joint conference with the European Association of Psychology and Law. In addition, representatives of APA, including such division members as Past-President Kirk Heilbrun (Allegheny University), Past-Past President Jane Goodman-Delahunty (a psychologist and judge), and William Foote (chair of APA's COLI), are currently holding meetings with representatives of the American Bar Association to plan joint APA-ABA activities, which may well involve AP-LS.

As was clear from reports presented at the EC meeting, we continue to sponsor a large number of programs, awards, and committees, including (but not limited to) Congressional Briefings (chair Gary Melton, University of South Carolina), Dissertation Awards (chair Caton Roberts, University of Wisconsin), Grants in Aid (chair Larry Heuer, Columbia University), Membership Committee (chair Diane Follingstad, University of South Carolina), White Paper Committee (chair Rich Wiener, St. Louis University), and Fellows Committee (chair Murray Levine, SUNY-Buffalo). At the recent EC meeting, we established a new committee, to be chaired by Member at Large Patty Griffin, to oversee our various conference activities. I also want to mention that Lori Butts (Hahnemann/Villanova University) is to be commended for taking on the role of chair of our student section a year earlier than expected.

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Subliminal Messages

Scientific Consensus & Expert Testimony: Lessons from the Judas Priest Trial*

Timothy E. Moore

The face of Jesus was 'discovered' in a forkful of spaghetti in a Pizza Hut billboard advertisement in DeKalb County, Georgia in May of 1991. Joyce Simpson said she was debating whether to quit her church choir as she was leaving a gas station, when she felt compelled to look up. "And I saw Christ's face," she said (Guevara-Castro & Viele, 1991). Subsequently, dozens of motorists claimed to have seen Jesus shrouded in spaghetti and tomato sauce on the chain's billboard. God works in mysterious ways but this tactic seems unnecessarily convoluted. On the other hand, compared to being abducted by aliens, seeing a face in a blob of spaghetti is small potatoes.

Sometimes perceptual illusions or faulty reasoning can have more pernicious consequences. For example, in 1986 a Philadelphia jury awarded a woman over \$900,000 in damages because she claimed her psychic powers had been damaged during a CAT-scan conducted at Temple University Medical School (*New York Times*, March 29, 1986). Her complaint was supported by the 'expert' testimony of a doctor. Unfounded fears are not unusual, but when they are afforded further esteem by a credulous judge or jury we risk surrender to the irrational. What the courts take seriously is believed to be serious by the common citizen. While science can supposedly provide some protection against litigious foolishness, sometimes science itself seems to be part of the problem.

How do scientific beliefs influence courtroom deliberations? More specifically, what happens to an extraordinary claim when it plays a pivotal role in a high-stakes criminal trial? Within the scientific community there are accepted methods and procedures for establishing the truth or falsity of an extravagant claim (Gardner, 1981),

but the courtroom is a different kind of forum. It is adversarial in nature. What happens to scientific consensus in court, especially if scientific information is distorted, misrepresented, or perhaps not science at all? Peter Huber has described what he calls "junk science" (Huber, 1991), and according to Huber junk science may (and often does) wreak havoc with scientific integrity and with justice.

Can a subliminal message induce someone to commit suicide? This was the central question at the Judas Priest trial.

This article explores the issue of junk science in the context of a specific trial -- namely the Judas Priest trial that unfolded in Reno Nevada in the summer of 1990. Two teenage boys, James Vance and Ray Belknap, had attempted suicide. At the time of the shootings, Belknap died instantly. Vance was severely injured but he lived, only to die of drug complications three years later. The plaintiffs (the boys' parents) alleged that subliminal messages hidden in the heavy metal rock music that James Vance and Ray Belknap listened to had contributed to their suicidal impulse. This trial is interesting for a number of reasons. First, it provides a classic example of junk science. Second, the trial established a legal precedent that has already influenced the ruling in a similar subsequent suit. Third, it provides a good forum for illustrating some important and often misunderstood aspects of subliminal perception.

Judas Priest was a British heavy metal rock band -- one of the first of that genre. Their popularity peaked in the mid -70's. The album in question (*Stained Class*) was produced in 1978;

the shootings took place in December 1985. It was alleged that a particular phrase in one of their songs ("Better by You Better Than Me") on the album triggered a suicidal impulse. The phrase at issue was "Do It." In isolation, this phrase has little meaning unless there is some antecedent to which the "It" refers. Moreover, the antecedent could not have been anything that was audible on the record (or visible on the album cover), because such material would have been protected by the First Amendment. Consequently the plaintiffs were in the difficult position of having to acknowledge that the boys were suicidal to begin with, and that the subliminal phrase "Do It" triggered the already existing disposition.

First Amendment Protection & the Denial of Summary Judgment

The defendants denied any and all knowledge of subliminal messages, and denied having engaged in any tricks or mischief during production of the record. Nevertheless, the case went to trial. The defense was unsuccessful in arguing that all speech (including subliminal speech) should enjoy first amendment protection. In a pre-trial motion, Justice Jerry Carr Whitehead ruled that subliminal speech does not deserve protection because it does not perform any of the functions that free speech accomplishes. Since the recipient of a subliminal message is unaware of it, the message can't contribute to dialogue, the pursuit of truth, the marketplace of ideas, or personal autonomy. There is no information exchange. No arguments are possible if recipients are unaware of the message's presence.

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Subliminal Messages

Scientific Consensus & Expert Testimony: Lessons from the Judas Priest Trial

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People also have a right, the judge added, to be free from unwanted speech. Since subliminal materials cannot be avoided, they constitute an invasion of privacy. For all these reasons, subliminals were not afforded First Amendment protection (*Vance v. Judas Priest*, 1989b). This ruling makes logical sense if a subliminal message could have the power attributed to it by the plaintiffs. The plaintiffs thus achieved a major victory in getting the case to trial in the first place.

While First Amendment protection has never been absolute, the exceptions have been narrow and carefully limited. Speech that is obscene, libelous, or an incitement to lawlessness is not protected by the First Amendment. Justice Whitehead's ruling provided another exception -- subliminal speech. We may not have seen the last of trials concerning allegations about subliminal influences (Dee, 1994). A few months after Judas Priest's acquittal, Michael Waller, the son of a Georgia minister, shot himself in the head while listening to Ozzie Osbourne's record *Suicide Solution*. His parents claimed that subliminal messages may have influenced his actions. The judge in that trial granted the summary judgment because the plaintiffs could not show that there was any subliminal material on the record. He noted however, that if they had shown that subliminal content had been present, they would not have received protection under the First Amendment because subliminal messages are, in principle, false, misleading or extremely limited in their social value (*Waller v. Osbourne*, 1991). Justice Whitehead's ruling in the Judas Priest trial was cited to support his position.

Liability 'Science'

If a car accident causes severe injury or death, it may be more appealing and more comforting to the driver if the cause of the accident can be attributed

to a mechanical defect rather than to operator error. It may also be more appealing and more lucrative to lawyers interested in liability. Liability science often assumes that every ill has a distant cause -- often a technological cause. Food additives, environmental toxins, and mechanical defects have all been alleged culprits in liability suits within the last two decades. The Judas Priest suit was a product liability case. An allegedly defective product was placed on the market and it caused harm. According to Timothy Post, one of the plaintiffs' lawyers, the subliminal message triggered the suicides. The defense denied placing any subliminal messages, and further contended that subliminal stimuli are not capable of compelling any behaviors, let alone suicidal ones.

One of the threats to scientific integrity mentioned by Huber (1991) has to do with abandoning the usual scientific meaning of the term causality. From a scientific perspective, we typically want to understand a phenomenon by discovering all the causal factors that contribute to it. According to Huber, however, liability science has its own rules. Liability science likes to simplify matters. A specific potential cause is selected and other contributing factors are ignored. It is assumed that no other variables were operating except the one of interest. The standard scientific approach is abandoned. Multiple risks are disregarded -- especially obvious, ubiquitous, taken-for-granted risks -- and all attention is focused on remote and (perhaps) implausible causes that implicate negligence on the part of someone else.

There was some evidence of this approach at the Judas Priest trial -- the tendency to subvert the meaning of causality -- at the Judas Priest trial. In his final ruling, the judge explicitly stated "the deceased and their parents are not on trial. The court is not

to judge the lives of the decedents or evaluate their families." (*Vance v. Judas Priest*, 1990, p. 2-3) The plaintiffs were obliged, however, to acknowledge some degree of risk, otherwise the "Do It's" would have been meaningless. What were some of these risk factors? According to the clinical psychologist who testified for the defense, both boys had serious long-term adjustment problems. Both were violent and abusive in their relationships. They felt socially alienated; they were emotionally distressed, often depressed, and impulsive. Vance once broke another student's jaw in a fight at school. Both had a history of drug abuse, petty crime, school failure, and unemployment. Family backgrounds were violent and punitive. Belknap had attempted suicide before and had expressed suicidal intentions. Just prior to the shootings, Belknap gave out some of his Christmas presents early, and indicated a desire for his sister to name her baby after him if anything happened to him. Most of these factors were mentioned by the judge in his final ruling. They were included "reluctantly" to show that the deceased were at high suicide risk (see Litman & Farberow, 1994). Was this a reasoned departure from the "subverted causality" that often typifies liability cases? Who can say? The concession may simply have been an artifact of the logical necessity for the plaintiffs to recognize the high-risk status of the boys. At any rate, multiple causes were recognized, albeit somewhat grudgingly. The judge stated that "[t]here exist other factors which explain the conduct of the deceased independent of the subliminal stimuli . . . [t]he deceased had propensities which made them a high suicide risk." (*Vance v. Judas Priest*, 1990, p. 31-32)

The Plaintiffs' Experts

The pursuit of isolated, distant and mysterious causes for various mishaps sometimes results in a search for distant and mysterious experts. Experts are invited to provide support for the contentious claim. When courts are tolerant of a subverted sense of the

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Expert Opinion

A Threat to Public Safety

The Question

You have been retained to evaluate a police officer who has been suspended due to bizarre and aggressive behavior. Specifically, you have been hired to render an opinion as to whether or not he is fit to return to duty. After completing your evaluation, you have concluded that the officer has a delusional disorder and believes that people have been plotting against him. Although he has made no direct threats, he has implied that he may take aggressive action if injustices against him do not stop. Upon informing the officer of your findings, and your inability to support his return to duty, he begins to accuse you of conspiring against him as well. In the weeks after your evaluation, you receive a number of vaguely threatening letters and telephone calls implying that you and your family are in danger.

Given the potential threat towards you and your family, you would like to file a criminal complaint and perhaps seek an order of protection or even involuntary psychiatric hospitalization. The officer, however, has informed you that he does not intend to use your evaluation and prohibits you from discussing the case or your evaluation with anyone.

- *Does confidentiality prohibit you from informing the police of the threats against you? Assuming you cannot justify a criminal complaint without disclosing confidential information, what are your legal options? Does a Tarasoff duty to protect apply in the context of a forensic evaluation? And does it apply when the potential victim is the clinician? Can you ever seek involuntary hospitalization for someone you evaluate in a forensic context, when the person is not your patient?*

The Response

The response is from Donald Bersoff, Director of the Law-Psychology Program at Villanova Law School/Allegheny University.

Dilemmas, by definition, are not easily resolved and lend themselves to different courses of action, each of which may be deemed reasonable. I view the ethical conflict here as between the professional's obligation of fidelity to one's client, including the obligation to protect intimate disclosures obtained in the course of the evaluation, versus the right of each of us to defend ourselves against threats of force and to protect the lives of other, innocent people. The problem in this case is to determine whether both of these interests may be satisfied.

In guiding us to a possible resolution some facts become crucial. First, one must know by whom the psychologist was retained. If a governmental agency asked for this evaluation, it would seem that there would be no expectation of confidentiality on the part of the examinee and the evaluator would be free

to disclose to the relevant authorities what is transpiring, akin to a court-ordered evaluation. The facts, as stated, are a bit ambiguous about the retention issue but the author of the dilemma informs me that the police department told the officer to obtain an evaluation, to be paid for by the department, but did not refer the officer to the evaluator. Although some ambiguity thus remains, to make the dilemma more difficult, I will assume that the relationship between the officer and the evaluator is a private one and that the officer could, indeed, have prevented the evaluator from making the assessment available to the department (although I doubt he could prevent the evaluator from talking to anyone about the case (e.g., his/her own attorney). The other crucial facts are that the police officer was suspended, which requires that the officer surrender his weapon (confirmed again with the author), and that the evaluator knew that the officer was suspended because of the officer's suspected bizarre and aggressive behavior. With these three facts in mind, a reasonable analysis is possible.

From a practice perspective, these kinds of cases are best dealt with by foreseeing problems, not attempting to deal with them after the fact. The evaluator can anticipate that the examinee may be severely mentally ill and as a result of that mental illness may present a serious risk of violence. Armed with that knowledge, the evaluator can then decide what limits to confidentiality he/she wants to impose on the examinee. Because the relationship is a private, contractual one (even though there may be no formal written agreement), the evaluator is entitled to develop some rules for the relationship before agreeing to undertake the requested task. For example, the parties can agree that the evaluator would be able to divulge any information that would endanger the public safety. The APA code of conduct (APA, 1992) would not preclude such disclosures. For good or ill, the code does not make confidentiality an absolute value and its breach a per se ethical violation (Principle 5.02). It does require the evaluator to disclose the limits of confidentiality as early as possible in the professional relationship (Principles

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Subliminal Messages

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meaning of causality, they may also be tolerant of fringe experts. There were several at this trial. One of them was Wilson Key. He is the man who pretty much single-handedly popularized the myth of subliminal advertising. He sees subliminal conspiracies everywhere (Key, 1973; 1976; 1980; 1989), so it was not surprising that he was present to support the plaintiffs' claims. While Key provided extensive pre-trial testimony, his contribution to the actual trial was negligible. It is possible that he undermined his own credibility with the court by opining that subliminal messages could be found on Ritz crackers, the Sistine Chapel, Sears' catalogues, and the NBC evening news. He also asserted that "science is pretty much what you can get away with at any point in time."

The most influential expert to testify for the plaintiffs was Howard Shevrin, whose credentials were unassailable. He has conducted research on subliminal influences for over twenty years and has a respectable track record of publications in peer-reviewed books and journals (e.g., Shevrin, 1988). Shevrin's argument was that subliminal commands are especially potent because the recipient is unaware of their source and attributes the directive or the imperative to himself -- to his own inner motivational state. While there is a certain logic to this, Shevrin was hard pressed to describe any research that supported his opinion. The argument also presupposes that a command or directive is inherently compelling -- that because it is an imperative in a linguistic or syntactic sense, it compels compliance in a psychological sense. According to Shevrin, when we consciously experience a command, we can ignore or comply with commands as we see fit, but if the command is subliminal, it may become part of our ongoing stream of motives, feelings, and inner promptings. It can therefore add an increment to any current predisposition that may be present, such as

suicide. The fallacy lies in assuming that an imperative message has some inherently motivating effect. His position also required the assumption that a suicidal disposition requires a trigger or precipitant in order to be acted on. This assumption does not square with the research literature on adolescent suicide (Maris, 1981). Shevrin was nevertheless persuasive. He provided an apparently respectable conceptual framework for explaining how a such a mysterious and almost magical force could operate.

The Defendants' Experts

Three experts were called by the defense: myself, Anthony Pratkanis (a professor of social psychology from the University of California at Santa Cruz), and Don Read (a cognitive psychologist from the University of Lethbridge). I testified about methodological and interpretational flaws in some specific investigations of subliminal auditory stimuli (e.g., Borgeat & Chaloult, 1985; Borgeat, Elie, Chaloult, & Chabot, 1985; Henley, 1975) and about the dubious empirical foundation underlying psychodynamic constructs. It was my opinion that there was no scientific support for the proposition that subliminal directives could induce behaviors of any kind, let alone suicide. Pratkanis reiterated some of the main points of my testimony regarding the history of research on subliminal influence, and described a recently conducted experiment (since published) showing that subliminal self-help tapes were ineffective (Pratkanis, Eskenazi, & Greenwald, 1994). He also expressed additional misgivings about the validity of the Borgeat studies -- studies Shevrin had cited as supportive of his position. Pratkanis resisted the intimation by the plaintiffs' lawyers that scientific findings were not of an enduring nature -- that what is known today may be abandoned and replaced by a new opinion tomorrow. Finally, Don Read provided an eloquent description of research on the comprehension and retention of re-

versed speech (see Vokey & Read, 1985).

Scientific Opinion vs. Scientific Evidence

The judge may have been seduced by psychodynamics, but perhaps not entirely convinced. Although Shevrin was successful in helping obtain the exception to First Amendment protection, he did not prevail during the actual trial. The ruling about subliminal effects stated: "The scientific research presented does not establish that subliminal stimuli, even if perceived, may precipitate conduct of this magnitude. . . . [t]he strongest evidence presented at the trial showed no behavioral effects other than anxiety, distress or tension." (*Vance v. Judas Priest*, 1990, p. 31) The judge's conclusion about subliminal effects is not too far from the consensus to be found among most cognitive psychologists. Well-established subliminal effects are rather modest in their magnitude and nature -- semantic activation of single words under highly constrained conditions (see Holender, 1986). To quote from a recent influential review: "...unconscious cognition is severely limited in its analytic capability" (Greenwald, 1992, p. 775).

At one point during pre-trial testimony, Bill Peterson (one of the defense counsels) asked Shevrin to describe the empirical basis for his opinion: "What experiments are you referring to when you say you're referring to a body of literature, experiments on which you base your conclusion that subliminal messages may be sufficient to induce suicidal behavior?"

"I'm basing my opinion, my expert judgment, on a corpus of literature, on hundreds of experiments", said Shevrin.

"Name one," said Mr. Peterson. (*Vance v. Judas Priest*, 1989a, p. 138-139).

Shevrin eventually alluded to three or four studies (e.g., Kupper & Gerard, 1990; Silverman, 1982; Smith,

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Spence, & Klein, 1959) -- none of which demonstrated anything remotely close to subliminal commands influencing motives. In fact, very few published studies have attempted to use subliminal directives, and those that have used them produced singularly unconvincing evidence for subliminal influences on intentionality (e.g., Zuckerman, 1960; see Moore [1982] for commentary).

Shevrin's position was supportive of the plaintiffs' claims. Moreover, if logically extended, it constituted an endorsement of auditory subliminal self-help tapes. If Shevrin's position were valid, subliminal self-help tapes should be effective for a substantial number of people. Users are predisposed and some may even be preoccupied with changing their behavior in the direction of the affirmations on the tapes. Those messages should, therefore, according to Shevrin's logic, alter and increase the listeners' inner motives. There is ample evidence, however, that subliminal self-help tapes are therapeutically useless (Greenwald, Spangenberg, Pratkanis, & Eskenazi, 1991; Merikle, 1988; Merikle & Skanes, 1992; Moore, 1988; Pratkanis, Eskenazi, &

Greenwald, 1994; Russell, Rowe, & Smouse, 1991).

While Shevrin's testimony may have been logical, it was not good science. The judge, to his credit, appears to have made a distinction between a scientific opinion based on personal conviction and the logic of psychodynamics, and one based on empirical support.

Pseudoscience

Up to this point, science has not fared badly. With respect to causality, the judge found that there were factors independent of the subliminal stimuli that made the decedents a high suicide risk. With respect to the scientific literature, he found that the research had not established that subliminal stimuli could have the sorts of effects postulated by the plaintiffs. There were other aspects of the case, however, in which scientific thinking fared less well. Pseudoscience sometimes plays a role in court because of dubious 'experts' who are willing to attest to just about anything. In these situations, junk science appears in court because experts have been invited to educate the judge and/or jury. The court has (perhaps unwittingly) imported junk science. Another reason that junk science gets into court

is because it already resides in court in the form of pre-existing beliefs about the phenomenon at issue.

The judge's beliefs about subliminal perception are reflected in his ruling

The judge's conclusion about subliminal effects is not too far from the consensus to be found among most cognitive psychologists.

that denied summary judgment and in his final judgment. In the latter he provided what he called a "history of subliminal stimuli". The title itself reveals some confusion. It is not the history of subliminal perception, nor the history of subliminal influences, but rather the history of subliminal stimuli. The difference is not irrelevant. Determining the subliminality of a stimulus requires some labor intensive scientific analysis. The arbitrary and capricious use of the phrase "subliminal stimuli" by journalists (and some social scientists) has resulted in frequent reports of "subliminal" effects in the absence of any demonstration of subliminality.

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Subliminal Messages

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What information formed the basis of the judge's beliefs about subliminal perception? The references consisted of several book chapters or articles from law journals, written by lawyers. He also cited information obtained from: *Saturday Review*, *NY Times*, *Omni*, *Time*, *High Times*, and *TV Guide*. The law articles, plus many of the magazine articles contain numerous references to James Vicary and Wilson Key. Key's expertise has already been described. Who was James Vicary? In September of 1957 James Vicary claimed to have conducted a study in Fort Lee, New Jersey, in which he projected the subliminal messages "Eat Popcorn" and "Drink Coke" onto a movie screen during movie showings to audiences (see Moore, 1982, Pratkanis, 1992; Rogers, 1993). Initial press releases reported that over 45,000 people had been tested in this way and that on-site sales had increased dramatically. Five years later Vicary acknowledged that he had had only a small amount of data -- too small to be meaningful. Soon after that he dropped out of sight completely. At best this so-called study was a shallow and meaningless empirical exercise. At worst, it was a complete fabrication (Rogers, 1993). Media coverage was nevertheless heavy, and continues to this day. Surveys have demonstrated that there is widespread belief in subliminal manipulation, and that the techniques are "taught" in high school and college courses (Block & Vanden Bergh, 1985; Synodinos, 1988; Zanut, Pincus, & Lamp, 1983).

Implicit, if not explicit in both Vicary's alleged demonstration, as well as media descriptions of the phenomenon, is the assumption that invisible or inaudible stimuli are inevitably unconsciously perceived. Portions of the judge's ruling reflect this assumption. His historical review of subliminal stimuli is more a review of media coverage of the topic rather than a scientific history, let alone a recent scientific appraisal. This popu-

lar, simplified, and exaggerated notion of subliminal persuasion is reflected in some of the other rulings and it is in these rulings that scientific truth was less well-served. Here is what needed to be demonstrated by the plaintiffs:

1. An inaudible (but technically identifiable) "message" was physically present on the recording.
2. The message was deliberately placed there.
3. The message was subliminal.
4. The message contributed to suicides.

As we have already seen, the judge rejected the fourth proposition, but what of the other three? The judge assumed that the technical presence of a "message" (item 1) was synonymous with its being subliminal (item 3). This assumption is the result of the mythological heritage of Vicary and all the media coverage since then. The judge's ruling stated that "... the 'Do It's' on the record were subliminal because they were only discernible after their location had been identified and after the sounds were isolated and amplified. The sounds would not be consciously discernible to the ordinary listener under normal listening conditions." (*Vance v. Judas Priest*, 1990, p. 18). The problem is that sounds which are not consciously discernible are not necessarily unconsciously discernible either. Many stimuli are not consciously discernible because they fall outside the range of our sensory apparatus. Consequently they do not initiate any neurological activity -- conscious or unconscious. The error consists of equating the physical presence of the signal with subliminality.

Physical Presence vs. Psychological Consequence

Empirical studies of subliminal perception indicate that, with rare exceptions, the phenomenon appears to be confined to a certain range of stimulus intensities (Cheesman & Merikle, 1986). This range places the stimulus

below a threshold of subjective or phenomenal awareness, but above an objective detection or discrimination threshold. In other words, subliminal perception is not perception in the absence of stimulus detection. It occurs when our introspective reports are at odds with or discrepant with objective measures of detection. It is not unusual for subjects to profess to be guessing or to claim ignorance of a stimulus' identity, when they are nevertheless making use of stimulus information. What this means is that no amount of expensive hardware or analyses of the signal can tell us if a signal is subliminal. Subliminality can only be determined by an analysis of the perceptual consequences of stimulation. Signal detection methods in which the human perceptual system is used as the measuring instrument might have provided a clearer picture of whether the recording in question actually contained a detectable message that could conceivably have influenced behavior (e.g., Merikle, 1988; Moore, 1995).

A physical analysis of the signal is not necessarily completely uninformative. Such an analysis could help determine the presence of a signal which might, after further analysis, turn out to be subliminal. The judge assumed that if an inaudible signal was present, that signal was therefore subliminal even though neither the plaintiffs nor the defense presented evidence establishing subliminality. It should be emphasized that even if subliminality had been established, it would not necessarily follow that the message would have the influence attributed to it by Shevrin. His claim, however, could have been obviated by the finding that the signal was not, in fact, subliminal.

Was the signal deliberately placed there? Who can say? The judge's opinion was that the signal at issue was simply a coincidental convergence of a guitar chord with an exhalation pattern. Under what circumstances could one confidently infer purposeful deception? Conceivably, the length and complexity of an inaudible signal

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Assessing Allegations of Child Sexual Abuse

Gerald P. Koocher

Review of Assessing Allegations of Child Sexual Abuse, by K. Kuehnle. (Professional Resource Press, 380 pages). To order, contact Professional Resource Press at 941-366-7913.

There are few more difficult forensic minefields for mental health professionals than the assessment of alleged child sexual abuse. The victim is usually the only witness to the abuse. The threats are generally substantial and explicit. Children's capacity to express themselves, resist adult coercion, demonstrate consistent recall, and overcome a plethora of developmental barriers necessary to present a convincing legal case is often halting at best. After the most tentative of disclosures child victims may be subjected to a series of prolonged and invasive interviews and examinations, that may themselves constitute a kind of iatrogenic abuse. Add to the complex equation a bevy of doctrinaire Procrustean clinicians who see abuse around every corner or reject it 99% of the time, and stand every ready to give "expert testimony" in support of their predetermined views. Even among skilled and thoughtful child-clinicians the complex factors of developmental variation, inconsistent findings, family pressures, multiple interviewer effects make this type of evaluation a major challenge with a very high error-cost for all concerned. In the face of this daunting, but necessary, clinical activity Kathryn Kuehnle has given us the most rare of gifts: a meticulously documented guide to such assessments replete with a cogent mix common sense, forensic skill, and solid behavioral science.

The volume provides everything one would need as a reference base in undertaking a child sexual abuse evaluation. Background chapters provide incidence and prevalence data, discuss the various roles (and hazards of role

shifting) that confront mental health professionals in this arena, and chronicle key developmental factors including the key issues of memory and suggestibility. Other chapters focus on practice applications including structuring the interview, assessment techniques, assessing veracity of children's statements, use on anatomically detailed dolls, use of standardized tests, and projective testing. Twenty-five appendices summarize assessment tools, sample form letters, and even a list of resources for families and professionals. Scores of useful tables, charts, and graphs comparing, summarizing, and analyzing the extant behavioral science literature abound in every chapter. The complex material is particularly well-integrated and easy to locate.

Kuehnle is a University of Minnesota Ph.D., which helps to explain both her rigorous approach to assessment and strong foundation in child development. She is in full-time independent practice in Tampa, Florida, where her practice is focused on the evaluation and treatment of abused and allegedly abused children.

How can a book review be believed unless at least a few flaws are detected? I have only two minor complaints about the volume: the title and critical appraisal of some material reported. Both relatively insignificant gripes grow out of the same source: Kuehnle is too modest and too polite. The title of this book could well be "The Handbook of Childhood Sexual Abuse Assessment." It is comprehensive, authoritative, skillfully organized, and impeccably documented. I have shown the volume to a half dozen clinicians who routinely undertake sexual abuse evaluations. In each case their reactions were the same: "Where can I get a copy, fast." Kuehnle is clearly a sophisticated scholar and talented clinician, regrettably (in my view), she is unnecessarily restrained in offering criticism of some studies

or assessment strategies of little or no validity. For example, instead of telling readers that one projective instrument touted by its author as useful in assessing abused children is highly questionable to outright inappropriate, she simply notes that "...empirical data does (sic) not exist..." (p. 339) to support the claim. As noted above, Kuehnle is too nice.

This book is destined to become the defacto standard reference for child sexual abuse assessment. It will be widely used by attorneys and forensic experts to review and assess the thoroughness and scientific validity of forensic child sexual abuse evaluations. Any clinician not familiar with the content will unprepared for cross-examination and subject to considerable embarrassment on the witness stand. □

The AP-LS Newsletter publishes reviews of books, tests, and measures in the broad area of psychology and law. Those wishing to have their publication reviewed should contact Randy Otto prior to sending materials at 813/974-9296 or via the Internet/E-mail at: otto@hal.fmhi.usf.edu.

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Continuing Education Opportunities

Developing Sensitivity to Multiple Minority Statuses: Using Personal and Organizational Power in Non-Oppressive Ways

APA DIVISION 44 PRE-CONVENTION WORKSHOP

Chicago, Illinois - August 14, 1997
9:00 a.m. - 5:00 p.m.

This workshop is designed to provide a didactic and experiential learning experience that will focus on increasing awareness and sensitivity to multiple minority statuses (i.e., race, ethnicity, gender, SES, etc.) within and outside the lesbian, gay, and bisexual community. Designed to be interactive, this workshop will include group discussion and active learning experiences that will enhance participants' ability to manage issues of diversity in academic, clinical practice, research, and organizational settings.

Trainers: Jamie Washington, University of Maryland Baltimore County and Kathy O'Bear, University of Massachusetts. **#CE Hour:** Seven (7). **Price:** \$125 (\$75 for full-time students). Make checks out to Division 44/SPSGLI. **Cancellation Policy:** A handling fee of \$25 is deducted for cancellation. Refund requests MUST be received by mail by August 1, 1997. **Registration:** Send your name, mailing address, and (area code)-phone number with payment to:

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Annual Meeting of the The American Academy of Forensic Sciences

Look for Upcoming Information on the Net

The American Academy of Forensic Sciences (AAFS) recently concluded its annual meetings in New York City last February. AAFS is an interdisciplinary forensic organization with several specialty areas, including Psychiatry and Behavioral Sciences. This year's conference included presentations ranging from physician-assisted suicide and criminal profiling to "The discrimination of window glass fragments by energy dispersive X-ray fluorescence spectrometry." As co-chair of the AP-LS committee on Relations with Other Organizations, Barry Rosenfeld organized and chaired a symposium of several psychologists presenting recent research on malingering. The symposium was quite well received, and will hopefully be the first of many opportunities to raise the profile of psychologists in AAFS, an area where we have traditionally been under-represented.

Dr. Rosenfeld was also named co-chair of the Psychiatry and Behavioral Sciences section for the next AAFS conference (in San Francisco) and encourages AP-LS members to consider this conference as an outlet for their work. A formal announcement regarding submissions will be posted in a subsequent newsletter.

Information regarding AAFS can be obtained via the internet (www.AAFS.org) or by telephone (719/636-1100). □

Calendar Highlights 1997

August

105th Convention of the
American Psychological
Association

APA Division 44 Pre-Conven-
tion Workshop

APA Division 41 Convention

September

AFCC's Third International
Symposium on Child Custody
Evaluations

AFCC's Third International
Congress on Parent Education
Programs

Submit entries for upcoming
issue of AP-LS News

October

Call for papers deadline for
1998 Biennial Conference

November

Call for nominations for
Saleem Shaw Award □

See APA Convention
Update on page 22.

See Division 41 Program
on page 23.

Nobel Peace Prize Winner to Speak at APA Convention

Nobel Peace Prize Winner and Boston University Professor, Elie Wiesel, will be the keynote Speaker at the Opening Session of APA's Annual Convention on Friday, August 15, 1997 at 11:00 a.m. The Opening Session is the kickoff event for both the Convention and the Presidential Miniconvention on Aging and Memory.

This year's presidential miniconvention theme, aging and memory, not only conjures images of remembering one's personal past, but also remembering history. "I chose Professor Wiesel to be the keynote speaker in part because of my research focusing on mood and memory issues of older adults," said APA's 1997 President Norman Abeles. "Symbolically, Elie Wiesel can help us remember."

Wiesel is known for his work on behalf of oppressed people everywhere. His experience as a Holocaust survivor led him to dedicate his talents as an author, teacher, and storyteller to defend human rights and peace throughout the world.

Wiesel was born in Sighet, Romania in 1928. He lived there until 1943, when the Nazis deported him and his family to Auschwitz. Later, he was transported to Buchenwald.

When the war was over, Wiesel studied in Paris then became a Journalist. For many years, he was silent about what he endured in the Nazi death camps. Eventually, Wiesel was persuaded to end that silence. He subsequently wrote La Nuit (Night).

Since its publication in 1958, La Nuit has been translated into 25 lan-

guages. Wiesel has written more than thirty-five books including A Beggar in Jerusalem, The Testament, The Forgotten, and most recently, his memoirs, All Rivers Run Into the Sea. He's won more than eighty awards and also holds honorary degrees from more than seventy-five colleges and universities from both the US and abroad.

"Professor Wiesel has an incredible ability to communicate his message to such a broad audience," said Dr. Abeles. "This is what makes him such an excellent spokesman for what occurred during the Holocaust."

"I hope that APA members come away from Professor Wiesel's speech with an appreciation of history and its lessons. We must be aware of the past so that we do not make the same mistakes in the future," said Dr. Abeles. "There was so much bigotry and hatred during that time."

Since 1976, Wiesel has been the Andrew W. Mellon Professor in the Humanities at Boston University where he also holds the title of University Professor. He is a Faculty member in the University's Religion and Philosophy departments. Also, he was the Distinguished Professor of Judaic Studies at the City University of New York (1972-1976), and the first Henry Luce Visiting Scholar in the Humanities and Social Thought at Yale University (1982-1983). □

Subliminal Messages

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might guide decisions about whether its placement was accidental or deliberate. Walt Disney Inc. was recently accused of inserting the “subliminal” directive “All good teenagers take off your clothes” into the animated family film *Aladdin*. At around the same time the letters S-E-X were alleged to have been surreptitiously embedded in a scene from *The Lion King* (*Globe & Mail*, Nov. 7, 1995). Walt Disney Inc. has emphatically denied attempting any kind of subliminal titillation.

In March of 1994, someone discovered that Jessica Rabbit had no underwear for a very short time during the animated movie *Who framed Roger Rabbit?* (*Globe & Mail*, March 17, 1994). In this example, there were at least three offending frames -- unnoticeable unless the tape is advanced frame by frame. Were they deliberately planted there for some nefarious reason or were the artists just saving some ink or playing a practical joke? It's hard to know, but the physical presence of an uncovered Jessica tells us nothing about the perceptual or psychological consequences of her undressed state. It is probable that under normal viewing conditions the contents of the frames are completely and thoroughly masked by the subsequent material. In the absence of the appropriate tests, however, one cannot simply assert that stimuli are (or are not) subliminal. In none of these examples is it possible to know definitively if the signal or image was subliminal, nor if it was deliberately planted.

Perception is an active, constructive process. Consequently, people often see or hear what they are predisposed (or encouraged) to perceive (Vokey & Read, 1985). A diligent search entailing the isolation and amplification of dozens of snippets from a 3-minute heavy metal rock recording would probably yield some intelligible words or phrases that would not be intelligible under normal listening conditions. In fact, it would be surprising if a few such “discoveries” were not

made. The fact that the signal in question on the *Stained Class* album was not contained on any particular track of the 24-track tape argues further against the possibility of deliberate chicanery.

Further Confusion

The two most credible witnesses testifying for the plaintiffs were, in the judge's opinion, Shevrin and Mrs. Rusk. Mrs. Rusk was a guidance counselor at Vance's school. Vance, the boy who survived the suicide attempt, was questioned about the circumstances of the shootings by Mrs. Rusk in the Spring of 1986. Mrs. Rusk's testimony was that Vance said “We got a message. It told us just Do It . . . It [the record] was giving us the message to just Do It.” This statement reflects conscious awareness on Vance's part of the presence and nature of the “Do It” message. Recall that Shevrin's position was that the subliminal message “Do It” was influential precisely because it was subliminal. The boys were unaware of receiving the prompt from an external source and, therefore, misattributed its source or origin to their own inner motivation. These two pieces of testimony are logically contradictory. They cannot both be correct. If, as Shevrin claimed, the message was subliminal, the boys should have been oblivious to its presence and its meaning. It is the unconscious nature of the message which, according to Shevrin, affords it the exceptional influence he ascribed to it. On the other hand, if they could actually hear it, as Vance indicated to Mrs. Rusk, then the message was not, by definition, subliminal, and was thus (a) protected by the First Amendment, and (b) not especially influential. The judge seemed unaware of this logical conundrum: “This testimony [Mrs. Rusk's] gives support to the premise that both James and Raymond subliminally perceived ‘Do It’ from the record.” (*Vance v. Judas Priest*, 1990, p. 30). In fact, Mrs. Rusk's testimony refutes the notion that the signal was subliminal. Shevrin was well aware of this difficulty. When the plaintiffs' lawyers suggested to him that Mrs. Rusk's testimony supported the notion

that the “message” had been retained in the boys' memories, he expressed concern that Mrs. Rusk may have been influenced by media reports, and/or that she was having trouble recalling what Vance had reported to her. Apparently, the plaintiffs' lawyers did not understand the logic of their own expert's testimony. At this point one wonders who was minding the store.

Defining ‘Expertise’

At issue in this trial was the claim that a subliminal directive incited suicide. From a scientific perspective this is an extraordinary and *prima facie* implausible proposition. There is not now, nor has there ever been any reliable empirical evidence that subliminal stimulation can produce anything other than fairly brief and relatively inconsequential reactions. Further, there is no evidence whatsoever that subliminal directives can compel compliance, and no such evidence was presented at the trial. Perhaps with the help of the defendants' experts, the judge came to realize that subliminal directives do not have the influence attributed to them by the plaintiffs. A more thorough grasp of the issue might have yielded a summary judgment, thereby precluding a long and expensive trial. By denying summary judgment, Justice Whitehead assumed the validity of the plaintiffs' central claim -- namely, that subliminal messages can influence human motivation.

There have been numerous legal commentaries on the Judas Priest ruling. Most of the post-trial controversy has concerned the question of First Amendment protection for subliminal messages. If such surreptitious manipulation is ineffective, then the issue of First Amendment protection becomes moot. Judging from legal scholars' commentary on Judge Whitehead's rulings, his understanding of the scientific issues was no worse than the rest of the legal community's (cf., Blen, 1992; Dee, 1994; Locke, 1991). Similar to the judge's description of subliminal stimulation, legal commentators' re-

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Subliminal Messages

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views contain copious references to Key, Vicary, and other nonscientists whose backgrounds are anything but scientific. Key's books constitute quintessential pseudoscience; they contain no citations, no references, and no documentation for any of his proclamations. While Key's testimony per se does not appear to have been of much significance at the trial, his extravagant and well-publicized claims had had 20 years to infiltrate the North American psyche (including the legal profession's), where scientific literacy is not a dominant feature (Burnham, 1987).

In the final analysis, however, it was not the obvious pseudoscience that misled the court as much as the misleading opinions of the well-qualified expert-- Shevrin. His views, while imaginative and logical, were anomalous with prevailing scientific understanding of the phenomenon at hand. A long resumé and a prestigious affiliation are no guarantee of a scientifically valid opinion. An expert whose testimony is unique, idiosyncratic, and unconfirmed by the broader scientific community is not educating

the court in the way that *Frye v. United States* (1923) intended, or that more recent rulings have encouraged (*Daubert v. Merrell Dow Pharmaceuticals*, 1993; *R. v. Mohan*, 1994). These recent rulings have emphasized the need for expert testimony to be reasonably well grounded in theories, methods, and procedures that have been accepted and validated by other scientists in the same field. It is not at all clear that Shevrin's testimony met this standard. It is equally clear, however, that the courts are generally ill-prepared to meet the challenge of evaluating the scientific validity of expert evidence (Miller, Rein, & Baily, 1994), especially in the social sciences (Richardson, Ginsburg, Gatowski, & Dobbin, 1995). A rigorous application of *Daubert's* admissibility criteria might well disallow any testimony based on Freudian principles because most of them are inherently unfalsifiable (Crews, 1995). The need for systematic judicial education on scientific principles is now a recognized priority. Eventually, improved scientific understanding will result in more equitable court rulings. In the meantime, as long as the legal community's scientific literacy skills are so little able to permit distinctions between sense and nonsense, the pub-

lic will continue to be entertained by (and foot the bill for) trials like that of *Vance v. Judas Priest*.

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American Psychology - Law Society News

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Author's Notes

This paper is based, in part, on presentations at the annual conference of the Committee for the Scientific Investigation of Claims of the Paranormal, held in Seattle, June 25, 1994. (Symposium title: Influencing Beliefs in the Courtroom: Rules of Law, Expert Testimony, and Science), and at the Ontario Criminal Lawyers' Association annual conference held in Toronto, October 27, 1995 (Session title: Deceptive Research: Good Science/Bad Science).

Timothy E. Moore can be contacted through the Psychology Department, Glendon College, York University, 2275 Bayview Avenue, Toronto, Ontario M4N 3M6 at phone: 416-487-6738 or 416-736-2100, ext. 88355, or via E-mail: timmoore@erda.glendon.yorku.ca

AP-LS Announcements and Updates

Dissertation Awards

1997 AP-LS Dissertation Award Process

The American Psychology-Law Society confers Dissertation Awards for scientific research and scholarship that is relevant to the promotion of the interdisciplinary study of psychology and law. Persons who will have completed dissertations in 1997 that are related to basic or applied research in psychology and law, including its application to public policy, are encouraged to submit their dissertations for consideration for the awards. First, second, and third place awards are conferred. Awardees will be invited to present their work at an award ceremony at the Biennial Conference of the American Psychology-Law Society, which meets next in 1998 in Redondo Beach, California.

To apply for the 1997 Awards, one copy of the completed dissertation, along with a letter of support from the dissertation chair, should be sent by January 1, 1998, to:

Caton Roberts, Chair
AP-LS Dissertation Awards
Committee
4914 Bayfield Terrace
Madison, WI 53705. □

Update

Scientific Review Paper

*Division 41 Committee on
Good Lineup Practices*

The recommendations from this committee are being presented at APA this year in Chicago, Friday, August 15, 2:00-3:50 pm, at the Sheraton Ballroom II. It is being sponsored by Divisions 41 and 3. The committee is composed of Gary Wells (Chair), Steve Penrod, Elizabeth Brimacombe, Roy Malpass, Sol Fulero and Mark Small. The committee's initial recommendations concern:

- 1) the structure and composition of lineups,
- 2) instructions given to eyewitnesses,
- 3) the issue of who should administer lineups, and
- 4) issues related to eyewitness confidence. A draft of the recommendations paper will be available to those in attendance and the session will involve both reports on the recommendations and audience input. □

Golf Classic

1997 APA Golf Classic: Oak Brook Hills Resort, Oak Brook, Illinois

You are invited to participate in the first annual APA Golf Classic. The tournament will take place Monday, August 18, 1997 in conjunction with the 105th Annual Convention of the American Psychological Association, to be held in Chicago in August of this year.

The format for the tournament will be a foursome scramble (Captain's Choice). Teams will be balanced by tournament management according to handicap and a special scramble handicapping system will be applied to each team's gross scramble score. If players do not have an established USGA handicap, please submit an average of your last five scores and a handicap will be assigned to you.

The tournament will include a buffet luncheon, a cocktail reception, and an awards banquet with buffet-style dinner. Awards will be given to the first, second, and third place foursomes.

Registration deadline is July 18th!

It is recommended that you register early as attendance is limited, and registration, open to all APA Convention registrants, is on a first-come, first-serve basis. The tournament is limited to the first 144 players who register.

For more information, contact Curtis Nickels 202/336-5539, fax 202/336-5568, or via E-mail: cen.apa@email.apa.org □



Minutes from...

AP-LS Executive Committee Meeting

AP-LS/Division 41
April 5, 1997

Submitted by
Diane R. Follingstad, Secretary

Attending Members and Committee Chairs: Jack Brigham, Pam Casey, Diane Follingstad, Sol Fulero, Gail Goodman, Patty Griffin, Tom Grisso, Kirk Heilbrun, Jim Ogloff, Randy Otto, Ira Packer, Ron Roesch, Richard Wiener

Approval of Minutes

The minutes from the August, 1996 executive committee meeting (APA Annual Conference, Toronto, Ontario, Canada) were approved by a unanimous vote of the Executive Committee (EC).

Treasurer's Report

Jim Ogloff handed out a balance sheet that summarized the Division accounts through December 31, 1996. As of that date, the Society's income for 1996 was \$163,644 and total expenditures for the year were \$77,737. This leaves a net income of \$71,907. However, this amount is higher than the net should be for the year because the subscriptions for *Law and Human Behavior* have not been paid for the year. The actual net income will be closer to \$26,000 for the fiscal year. A significant proportion of income is from dues and contributions (\$95,693) with another significant proportion from registrations to the Biennial AP-LS Conference (\$34,250). Over the year, the Society earned \$6971 in interest income, \$10,006 in royalties, and \$14,000 in *LHB* editorial expenses. \$54,918 was spent for meetings and conferences, \$11,861 for awards and committees, \$20,352 (which will be modified to approximately \$60,000) for publications, and the rest for administrative costs (which are a little higher in Biennial Conference years) and miscellaneous. The Biennial Conference expenses totaled \$32,410 while the income for the

conference was \$34,250, resulting in a net gain of \$1,840.

Total assets for the Society were \$205,873 as of 12/31/96, while total liabilities and fund balance were \$133,749. In the future, advertising income (which was never very high) will become nonexistent due to the fact that we would lose our special postal rate if the Society receives advertising income. There was an increase over the last year in grants-in-aid up to \$4000. Income has increased from non-dues sources.

Motion: Jack Brigham moved that Jim Ogloff will prepare a report on investment options for the August 1997 EC meeting in Chicago at the Annual APA Convention. Kirk Heilbrun seconded the motion. The motion was passed.

Motion: Jack Brigham moved that the Financial Report be approved. Diane Follingstad seconded the motion. The motion was passed.

Report of the Conference Committees

APA 1997 Program Committee

Ira Packer (Program Chair) and Edie Greene (Co-Chair) presented a written and oral report for the 1997 Division 41 program at the APA Convention in Chicago in August 1997. Ira Packer reported that there were 66 unsolicited submissions along with five invited symposia, three award presentations and three invited speakers. There was a high acceptance rate of the unsolicited submissions which were ranked highly by reviewers. There are 33 hours of presentations sponsored by Division 41 at APA which are spread over four days (Friday through Monday). The Distinguished Contributions award will be given to Dr. Alan Goldstein and the Saleem Shah award will be given to Dr. Sue Limber.

Interested parties can contact Ira Packer regarding possible offerings in the Division 41 Hospitality Suite as there are still time slots available which can be used for diverse division activities. The EC thanked Ira Packer and Edie Greene for their efforts to date and for the excellent program which they have been organizing.

Motion: There was a motion by Kirk Heilbrun and seconded by Tom Grisso to accept the report of the APA Program Chair. The motion was passed.

Discussion ensued regarding time frames to begin the process of planning earlier for conferences. Ira Packer was asked to complete a time line for future program chairs for handling responsibilities for APA conferences. The President (Gail Goodman) formalized the Program Committee as an oversight committee for the conferences at the annual APA conference and the Biennial Conferences. The purpose of this committee will be to provide for continuity of the conferences over time, allow for upcoming program chairs to serve in less active roles while learning from the current chair's experience, and allow for past program chairs to offer information to enhance the process of planning conferences. This committee will oversee the process of planning the conferences, oversee deadlines, and have a role in soliciting those individuals who will be nominated to serve as program chairs for the individual conferences. The co-chairs will consist of the current president of the Society and an individual whom she/he appoints to serve as co-chair. Other members of the Program Committee will consist of the current Treasurer, the current program chairs of the APA and Biennial Conferences, the incoming program chairs of the APA and Biennial Conferences, the past pro-

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gram chairs of the APA and Biennial Conferences and the administrator of AP-LS. The current Co-Chairs of the Program Planning Committee will consist of the President (Gail Goodman) and Patty Griffin.

Golden Anniversary of Divisions Celebration

Margaret Coggins and Marisa Pynchon are coordinating Division 41's part in the celebration at APA in 1997 commemorating 50 years of APA Divisions. Plans to date include a social hour theme honoring the division's accomplishments and past presidents, an ornamental plaque listing the division's presidents to be presented at the social hour, a booth at the day-long APA Division Fair (Sunday, August 17th from 10:00 a.m. until 4:00 p.m.), t-shirts bearing the AP-LS logo, and a symposium on the History of Psycho-Legal Scholarship. A theme song for the division was chosen to be *I Fought the Law and the Law Won*. Pam Casey will be responsible for making a display board and organizing handouts for the booth. Sol Fulero will coordinate Division 41 members to take turns at the booth. In addition, Sol Fulero is currently writing the chapter delineating the history of Division 41 for the volumes that will be published on the histories of APA divisions. Past presidents will be invited to the Social Hour. On Sunday night at the conference there will be a grand event hosted by the Commission and B.A. that will include music, dancing, a 50th anniversary toast and birthday cake for all which will be open to all convention attendees (no fees or invitations required).

1998 Biennial Conference

The co-chairs for the program of the 1998 Biennial Conference are Beth Wiggins and Melissa Warren. A site has been located and a contract signed for the conference at Redondo Beach, Los Angeles, California. The hotel is the Crowne Plaza located just 7 miles from the LA International Airport and directly across from the Redondo Pier/King Harbor Marina. Beaches are

within two blocks. The accommodations are Pacific Ocean view rooms with private balconies. Rates will be \$129 for either a single or double room. Registration will begin on March 5, 1998 at 8:00 a.m. and the conference will last until 5:00 p.m. on March 7th. To ensure the group rate, attendees must identify themselves as being part of the AP-LS Biennial Conference when making reservations.

There will be no joint meeting in 1998 with Division 35. The AAFP workshops will not be offered at the same time as this Biennial, although sentiments were voiced that we should work in the future toward always trying to coordinate with AAFP in this regard.

It was suggested that selection of the Biennial Co-chairs for the 2000 AP-LS conference be chosen in the near future to include them on the Program Planning Committee very soon so that they would be able to observe the planning process of the 1998 Biennial.

Motion: Kirk Heilbrun moved that the EC elect as co-chair for the 1998 Division 41 APA convention meeting Dale McNeil from the University of California, San Francisco. Jim Ogloff seconded the motion. The motion passed.

Consideration of Special Issues

The Executive Committee discussed each of the following special issues before proceeding with the Standing Committee Reports in order to assure that decisions would be reached on some timely matters.

Petition for Recognition of
a Specialty in Forensic Psychology
Prior discussions regarding whether AP-LS should collaborate with the American Academy of Forensic Psychology (AAFP) in submitting a petition to the APA Committee for the Recognition of Specialties and Proficiencies in Professional Psychology (CRSPPP) led to some questions which needed clarification. A committee was appointed by Gail Goodman

consisting of the following people and several members of AAFP: Don Bersoff, Jack Brigham, Jane Goodman-Delahunty, Kirk Heilbrun, Randy Otto, Ronald Roesch, Kathy Stafford, and Rich Wiener.

Kirk Heilbrun, on behalf of the entire committee, investigated further whether this joint project would be worth doing, what implications the recognition as a specialty would have for the field and individual psychologists, and how a specialty in forensic psychology might be defined for such a petition. He determined that APA has recognized four applied areas historically and CRSPPP has been considering expansion for some time. An APA official noted a connection between the recognition of specialties and ABPP, and the recognition of proficiencies and the National College. Applications of a specialty or proficiency designation have clearly been applied. If CRSPPP approved a petition for forensic psychology as a specialty, this would be submitted to APA Council for approval. If approved, forensic would join clinical, counseling, school, I-O, and recently approved neuropsychology as applied specialties in psychology. Comments from people in the know indicated that designation as a specialty does not appear to have implications for accreditation of individuals. This appears due to the recognition of ABPP as a specialty accrediting body for individuals and APA has no plans to accredit individuals (according to sources). The National College will award proficiency designations on individuals. An area cannot be both a specialty and a proficiency, raising the concern that should another body attempt to have forensic psychology as a proficiency and it was approved, then forensic psychology could not be also designated a specialty. It is possible that specialty determination would have implications for the accreditation of predoctoral and postdoctoral training programs. The most immediate implication for forensic psychology to be designated as a specialty would most likely to a move to accredit

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Minutes AP-LS Executive Committee Meeting

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postdoctoral fellowships in this area.

Based on the information solicited, Kirk Heilbrun thought that if we decide to complete the petition, we would be more likely to define forensic psychology narrowly to fit the intention of recognizing applied areas. Several individuals involved in the CRSPPP process have been mildly to strongly encouraging Division 41 to be involved in submitting a petition.

Some concerns were raised by EC members regarding the implications of submitting such a petition. However, it was indicated that AAFP is likely to submit a petition if AP-LS is not interested in participating, although AAFP would prefer a joint project for this purpose.

Motion: Jack Brigham moved and Ron Roesch seconded the motion that a subcommittee of two, representing nonclinical forensic psychologists, be liaison members to AAFP in the likelihood they are to submit a petition to CRSPPP. Sol Fulero moved and Diane Follingstad seconded the motion to table this motion. The motion was passed to table.

Motion: Pam Casey and Jack Brigham moved and seconded the motion that the existing committee established for this purpose continue liaising with AAFP, but the committee can have the flexibility to appoint two people to specifically contact AAFP as necessary. Sol Fulero moved and Diane Follingstad seconded the motion to table this motion. The motion was passed to table.

Motion: Jim Ogloff moved that if AAFP decided to draft a petition that AP-LS request to participate jointly with them in drafting such a petition. This motion was seconded by Diane

Follingstad. The motion was passed.

Report on the 1997 APA Divisional Leadership Conference

Jack Brigham, as the President Elect of AP-LS, attended the Divisional Leadership Conference and reported on some ideas brainstormed by the breakout groups. Ideas were generated for ways to enhance communication within and across APA divisions, for ways to help divisions work more effectively within APA, and other possible actions that could be taken by APA. These items were presented for informational purposes only, so no action was taken.

The Future of AP-LS: Ideas for Directions, Innovations, Changes and Excitement

Retreat for Strategic Planning: Pam Casey, as a member-at-large, and Diane Follingstad, suggested that the Division engage in strategic planning to review the mission of AP-LS, develop goals and generally have a context in which to ground our decisions in the future. She suggested that a 1-2 day planning session/retreat be held for this purpose by the EC. She also proposed that a committee plan how the retreat would be conducted, e.g., whether a facilitator should be present, whether particular documents should be read in advance, how to best bring in a variety of perspectives into the strategic planning session etc. APA has Division Services with long-range planning information and these are services which might be tapped in the planning of the retreat. Possible questions for the retreat might be: 1) What is our purpose?; 2) Are we a discipline? Do we represent a field? Sol Fulero also added ideas for questions for a retreat: 3) Are we developing factions in the field that are problematic?; 4) How do we make Division 41 the focal point for psychology and law?; 5) What is our relationship with ABFP/AAFP?; 6) Would Division want another journal? What is the goal for having journals?; 7) Are we a loose grouping of interest groups with an

overriding interest in psychology and law? Is that a strength?

Ideas were put forth as to ways a steering committee might plan for such a retreat to deal with the future of AP-LS. Suggestions were to have a meeting with past presidents of the division, obtain the APA steering meeting plans, meet in November after the August convention at which more people could be involved in developing issues for the retreat, and present the retreat's ideas at the Biennial in March, 1998.

Motion: Sol Fulero moved and Pam Casey seconded the motion that a steering committee begin planning a retreat for the purpose of discussing the future of AP-LS. The steering committee would meet at APA in August to plan the retreat in November. At the retreat, specific strategic plans would be promulgated which would be presented at the Biennial Conference in March, 1998. The motion was passed with one opposing vote.

Pam Casey was selected to head the steering committee. Other members of the committee are Jack Brigham, Sol Fulero and Jim Ogloff.

Joint Sponsorship of a Meeting with the European Association of Psychology and Law (EAPL): Ron Roesch has attended the EAPL and is currently in contact with members of that association. They are interested in better ties with AP-LS and wish to jointly sponsor a meeting. Ron Roesch has engaged in preliminary discussions with EAPL and has suggested that a potential meeting might occur in 1999 (not a Biennial year), that July would be an optimal time for such a meeting, and that AP-LS might want to have some input on the location of such a meeting. Involvement by AP-LS would mostly involve establishing procedural issues for selection of presentations. Because Ron Roesch has already had correspondence with this association, the President designated him to head an Ad Hoc Committee to look into such a possibility. This issue will also be linked with the Com-

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Web Site

The Radical Psychology Network Web Site

<http://www.uis.edu/~fox/radpsy>

The Radical Psychology Network announces the creation of a new World Wide Web site (at <http://www.uis.edu/~fox/radpsy>). We hope to become a centralized resource for radical/progressive psychologists and others who are critical of both mainstream psychology and mainstream society. Please check us out and give the URL to interested students and colleagues. Also, please E-mail (to fox@uis.edu) conference announcements, organizing efforts, other internet links, and any similar items you'd like us to list on the site.

AP-LS Deadlines **Mark Your Calendar**

Please note the following important deadlines for various AP-LS/Division 41 activities.

September 1, 1997 - Submit entries for the upcoming fall issue of AP-LS News.

October 15, 1997 - Call for papers deadline for 1998 Biennial Conference (see page 21).

November 1, 1997 - Call for nominations for Saleem Shah Award (see page 33).

January 1, 1998 - Applications for AP-LS Dissertation Awards are due (see page 15).

If you would like to include your announcement for continuing education activities, calls for papers, fellowship or position vacancies in the next AP-LS Newsletter, contact Randy Otto at 813/974-4510 or via the Internet at: otto@hal.fmhi.usf.edu □

FELLOW STATUS IN THE AMERICAN PSYCHOLOGICAL ASSOCIATION

Becoming a Fellow recognizes outstanding contributions to psychology and is an honor valued by many members. Fellow nominations are made by a Division to which the Member belongs. The minimum standards for Fellow Status are:

- *Doctoral degree* based in part upon a psychological dissertation, or from a program primarily psychological in nature and conferred by a regionally accredited graduate or professional school.
- *Prior status* as a Member of the Association for at least one year.
- *Active engagement* at the time of nomination in the advancement of psychology in any of its aspects.
- *Five years* of acceptable professional experience subsequent to the granting of the doctoral degree.
- Evidence of *unusual and outstanding contribution or performance* in the field of psychology.

To find out more information, contact Lisa Orejudos in the APA office at 202/336-5590, or by E-mail at: ljo.apa@email.apa.org.

Please Note

This is the only AP-LS Newsletter issue before 1998 Call for Papers for the Biennial Conference.

Call for Papers and Manuscripts

Law and Human Behavior

The First 20 Years

Law and Human Behavior invites manuscript submissions for a special issue celebrating the 20th anniversary of the inception of the journal. We are interested in developing a special issue that reviews various areas within the field of law and psychology from an empirical and conceptual perspective. We intend to publish articles that bring together programs or bodies of research that contribute to our understanding of a topic area within law and psychology. One goal of the issue is to represent the field broadly. To this end, we would especially welcome manuscripts that represent bodies of work that have not yet received adequate attention from psycholegal scholars. Manuscripts that discuss the contributions of the field to law or that analyze the discipline as a whole are welcomed as well. These latter papers should focus on the conceptual underpinnings of an area of psychology and law. Finally, international and cross-cultural perspectives will be considered.

The editor for this issue is James R.P. Ogloff of the Mental Health, Law, and Policy Institute at Simon Fraser University. Four copies of manuscripts should be sent to:

James R.P. Ogloff
Department of Psychology
Simon Fraser University
Burnaby, British Columbia
Canada V5A 1S6

E-mail: jogloff@arts.sfu.ca

Manuscripts must be postmarked no later than Nov. 1, 1997. □

Behavioral Sciences and the Law

Integrating Research and Practice in Forensic Psychology & Psychiatry

Deadline for All Submissions is July 1, 1997

A forthcoming issue of *Behavioral Sciences and The Law* will be devoted to the integration of research and practice in forensic psychology and psychiatry. Possible topics include but are not limited to:

- using research findings to guide forensic decision-making
- development and implementation of research-based standards for practice
- education and training of scientist-practitioners in forensic psychology and psychiatry
- practical legal research strategies for mental health professionals
- research and/or reviews of research dealing with reliability, validity and/or other aspects of psychological assessment tools used in forensic contexts

Research manuscripts presenting findings with immediate application to forensic practice are also invited. Manuscripts should be 25-35 double-spaced pages adhering to the style of the APA Publications Manual or the Harvard Law Review, contain a 150 word abstract, and be submitted in triplicate to:

Joseph T. McCann, 151 Leroy Street,
Binghamton, NY 13905, Phone &
FAX: (607)797-2315
E-mail: jtmccann@prodigy.com

For further information, please contact: Charles Patrick Ewing,
Co-Editor, *Behavioral Sciences and the Law*, 723 O'Brian Hall, State Univ. of New York, Buffalo, NY 14260, Ph: 716/645-2770 FAX: 716/654-2064
E-mail: cewing@acsu.buffalo.edu □

Behavioral Sciences and the Law

Families and the Courts

Behavioral Sciences and the Law will devote a special issue to Families and the Courts. Potential contributions can focus on any relevant topic; however, we especially are interested in manuscripts that address issues relevant to service delivery to children and their families who become involved with the judiciary.

The deadline for receipt of manuscripts is September 1, 1997. Manuscripts should be twenty to thirty double-spaced pages. Failure to conform to the style requirements of the newest Publication Manual of the American Psychological Association or the 15th edition of a Uniform System of Citation may lead to rejection of manuscript. Submissions must contain a 150 word abstract.

Send three copies (2 of which need to be prepared so that they can be "blind-reviewed") to either of the special issue editors, Alan Tomkins or Pam Casey.

Professor Tomkins can be reached at:
The University of Nebraska-Lincoln
Law/Psychology Program
209 Burnett Hall
Lincoln, NE 68588-0308

Phone: 402/472-3743
Fax: 402/472-4637
E-mail: atomkins@unlinfo.unl.edu.

Dr. Casey can be reached at:
The National Center for State Courts
PO Box 8798
300 Newport Avenue
Williamsburg, VA 23187-8798 USA

Phone: 757/253-2000;
Fax: 757/220-0449
E-mail: pcasey@ncsc.dni.us □



Research Opportunities

NSF Law and Social Science Program

The Law and Social Science Program of the National Science Foundation reminds AP-LS members of its regular research opportunities. In addition, Law and Social Science competitions welcome planning grant proposals, travel support, requests for conferences and other activities to lay the foundation for research, and proposals for improving doctoral dissertation research.

Regular Competition

The regular grant competition supports social scientific studies of law and law-like systems of rules. These can include, but are not limited to, research designed to enhance the scientific understanding of the impact of law; human behavior and interactions as these relate to law; the dynamics of legal decisionmaking; and the nature, sources, and consequences of variations and changes in legal institutions. Target dates for the submission of proposals in this competition are January 15 for proposals to be funded as early as July; and August 15 for proposals to be funded in or after January.

Global Perspectives Competition

The Program is also continuing its special competition for research dealing with global perspectives on sociolegal studies. The aim of this initiative is to support research on law and law-related processes and behaviors in light of the growing interdependence and interconnectedness of the world. Proposals may locate the research within a single nation or between or across legal systems or regimes as long as they illuminate or are informed by global perspectives. **Proposals submitted to the global perspectives competition must be received at NSF by February 1, 1998.**

Application Procedures

See the guidelines in NSF's Grant Proposal Guide (NSF 95-27). Documents are available via the internet at: stisservice@nsf.gov. For further information, contact: Harmon Hosch, Program Director, Law and Social Science Program NSF, 4201 Wilson Blvd., Arlington, VA 22230; Phone: 703/306-1762, FAX: 703/306-0485, or via E-mail at: hhosch@nsf.gov □

Call for Papers

1998 AP-LS Biennial Conference

The 1998 AP-LS Biennial Conference will be held in Redondo Beach, California at the Crowne Plaza Hotel on March 5 – 7, 1998. Proposals for symposia, papers, and posters are invited. The submission deadline is October 15, 1997. Submissions on topics in all areas of psychology and law are invited. Proposals describing novel applications of psychology to law, those that are empirically-based, and those on topics that have not been prominent during recent meetings, such as corrections, are particularly welcome. Papers authored or co-authored by students are encouraged.

Proposals must include:

1. Face sheet listing the name, affiliation, mailing address, and phone number, and E-mail address of the primary author; names and affiliations of co-authors; whether proposal is for a single paper, poster, or symposium; and indicating whether authors would like the submission considered for a poster if not accepted as a paper.
2. Five copies of the proposal prepared for anonymous review. The proposal should include a 150-word abstract and should not exceed 1,500 words.

Send proposals via either U.S. mail to:

Beth Wiggins, Federal Judicial Center (RES)
One Columbus Circle N.E.
Washington, D.C. 20002-8003

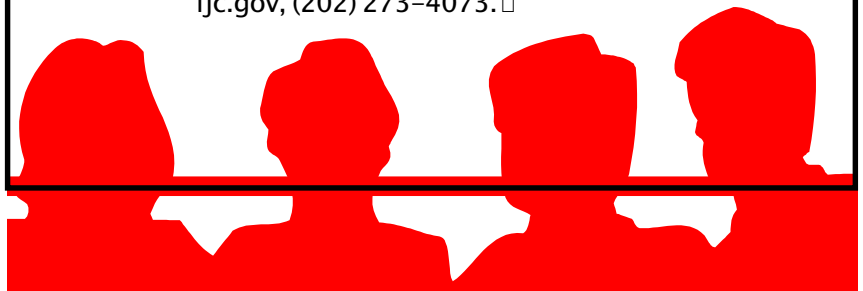
Or E-mail to: bwiggins@fjc.gov.

If you do not have an E-mail address, please send a legal-sized stamped envelope addressed to the primary author. If you have any questions or comments about the program, please contact one of the program chairs: Melissa Warren, mgw.apa@email.apa.org, (202) 336-6010 or Beth Wiggins, bwiggins@fjc.gov, (202) 273-4073.

Reviewers Needed

Regular and student AP-LS members are needed to review Biennial program proposals. If you are interested, please contact:

Melissa Warren mgw.apa@email.apa.org, (202) 336-6010 or Beth Wiggins, bwiggins@fjc.gov, (202) 273-4073. □



1997 APA Convention UPDATE

The 105th Convention of the American Psychological Association will be held in Chicago, Illinois, between August 15-19, 1997. Meetings are scheduled in the Fairmont Hotel Chicago, the Hyatt Regency Chicago, the Palmer House Hilton, the Sheraton Chicago Hotel and Towers, and the Navy Pier. For detailed information regarding transportation, lodging, air travel, registration, and continuing education, you may access the APA website at www.apa.org/convention/main.html, or contact convention personnel at the American Psychological Association, 750 First Street, NE, Washington, DC 20002-4242. Phone 202/336-6020.

Convention Highlights

- APA is honored to present Nobel Peace Prize Winner Elie Wiesel as Keynote Speaker for the Opening Session of this year's convention. See page 11 for further information.
- Developing Sensitivity to Multiple Minority Statuses: Using Personal and Organizational Power in Non-Oppressive Ways
APA DIVISION 44 PRE-CONVENTION WORKSHOP
August 14, 1997, 9:00 a.m. - 5:00 p.m.
See page 10 for further information.
- Hospitality Suite: As in past years, Division 41 will have a Hospitality Suite at the APA Convention. The suite will be available Friday - Sunday. All groups and interested parties who would like to reserve space in the suite should contact Ira Packer as soon as possible with their requests, included desired times (and alternatives) at ipacker@aol.com or by phone/fax at 413-739-6733. □

Special Needs Assistance

The Board of Convention Affairs would like each person with a disability who is planning to attend the Convention in Chicago, Illinois, August 15-19, 1997, to identify himself or herself and to provide information on how we can make the convention more readily accessible for his or her attendance. APA will provide a van with a lift as transportation for persons in wheelchairs, interpreters for hearing impaired individuals, and escorts/readers for persons with visual impairments. We strongly urge individuals who would like assistance in facilitating their attendance at the convention to register in advance for the convention on the APA Advance Registration and Housing Form which will appear in the March through May issues of the *American Psychologist*. A note which outlines a person's specific needs should accompany the Advance Registration and Housing Form.

We encourage persons with disabilities to select one of the following convention hotels for housing as they are the best ones equipped to deal with special access issues: 1) Hyatt Regency Chicago; 2) Sheraton Chicago; 3) Fairmont Hotel Chicago; 4) Days Inn of Chicago. □

APA Convention Opening Session Time Changed

The time of the Opening Session for this year's APA Convention has been moved from its previous time slot, 5:00 p.m. to 11:00 a.m. on Friday, August 15. The change was made to accommodate the keynote speaker (*See article on page 11 for more information*). Information regarding the location of the session will be available in March or April and will be announced in the APA Monitor and in the Convention program. □

Many Thanks

We would like to thank all the reviewers who donated their time to reviewing the submissions for the Convention Program. We really appreciate your diligence and timeliness. Division members who would like to volunteer to review submissions for next year's program should send their names and addresses to: Edie Greene, Department of Psychology, University of Colorado, PO Box 7150, Colorado Springs, CO 80933.

Ira K. Packer
Program Chair

Edie Greene
Program Co-Chair □

American Psychology-Law Society

APA Division 41 Convention Program

Chicago August 15 - 19, 1997

Friday, August 15, 1997

□ □ □

9:00- 9:50 a.m.

Paper Session: Contemporary Issues in Psycholegal Research, *Margaret Bull Kovera, Chair*

Cognitive, Social and Developmental Factors in Suggestibility: A Meta-Analysis, *Bradley McAuliff and Margaret Bull Kovera*

Lineup Suggestiveness and Expert Testimony, *Jennifer Devenport, Mikaela Vidmar, and Brian Cutler*

Searching for Hate in Hate Crimes: Motivations for Antigay Violence, *Karen Franklin*

□ □ □

10:00-11:50 a.m.

Symposium: Decisions about Scientific Evidence: Forensic Scientists, Expert Witnesses and Laypersons, *Shari Diamond, and Jason Schklar, chairs*

- Signal Detection Theory and Decision-Making in Forensic Science, *Victoria Phillips, Michael Saks, and Joseph Peterson*
- The Experiences of Scientific Experts in the Legal System, *Shari Diamond, Twana Harris, Timothy Lavery, Lori McKinney, Jason Schklar, Nicole Schnopp-Wyatt, and Mei Xiao*
- The Role of Jargon in Judgments of Expertise, *Elizabeth Bennett*
- Improving Jurors Comprehension of Statistical DNA Evidence by Inducing an Outside Perspective, *Jonathan Loehler, and Laura Macchi*
- Sources of Error and Opportunities for Correction in Response to Scientific Evidence, *Shari Diamond and Jonathan Casper*
- Discussant: *Joseph Sander*

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12:00-12:50 p.m.

Paper Session: Juror Decision Making, *Ronald Dillehay*

Juror Evaluations of Expert Evidence Validity, *Margaret Bull Kovera, Bradley McAuliff, and Kellye Hebert*

Perceptions of Justice and the Expert Witness, *Robert Johnstone, and Robert Mauro*

Sexual Assault and Defendant/Victim Intoxication: Jurors' Perceptions of Intent, *Regina Schuller, Anne Marie Wall, and Patricia Hastings*

False Recognition in Death Penalty Venue Surveys: Alternative Solutions, *Ronald Dillehay*

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1:00-1:50 p.m.

Invited Address: *Tom Grisso, Chair*

Building a New Child Protection System: Problems with Legal Architecture, *Gary Melton*

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2:00-3:50 p.m.

Symposium: Good Practice Recommendations for Lineups and Photospreads, *Gary Wells, Chair*

- Instructions on Viewing Lineups, *Roy Malpass*
- The Selection of Distractors, *C.A.E. Brimacombe*
- Eyewitness Confidence, *Steven Penrod*
- A Comparison of Lineup Recommendations, *Solomon Fulero*
- Discussant: *Mark Small*

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4:00-4:50 p.m.

Symposium: New Works on Capital Punishment, *Edith Greene, Chair*

- Capital Mitigation and the Study of Lives, *Craig Haney*
- Why Judicial Errors are Common in Capital Cases, *Samuel Gross*

Saturday, August 16, 1997

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8:00-8:50 a.m.

Symposium: Psychic Trauma: Clinical and Forensic Issues, *Richard Greenbaum, Chair*

- The Legal Aspects of Psychic Trauma, *Martin Greenbaum*
- Symptomatic Biophysiological Substrates of Psychic Trauma: Symptom Formation, Treatment and Forensic Implications, *Michael Hughes*
- The Use of Projective Tests in the Diagnosis of Psychic Trauma: Treatment and Forensic Implications, *Richard Greenbaum*

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9:00 -9:50 a.m.

Symposium: Minorities in Prison: International Perspectives, *Melissa Warren, Chair*

- First Nations in the Correctional Service of Canada, *Rachel Mulloy*
- A Violence Prevention Program by and for Incarcerated Maori Men, *Murray Hahn*
- Native American and Hispanic Persons Incarcerated in Prisons, *Eloy Romero and Alex Trujillo*
- Discussant: *Melissa Warren*

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10:00 -10:50 a.m.

Symposium: History of Psycholegal Scholarship, *Mark Small, Chair*

- Historical Representation of Legal Psychology in Texts and Law Reviews, *Solomon Fulero*
- Content Analysis of *Law and Human Behavior* Articles, *Mark A. Small*
- A History of Psychology's Attempts to Influence the Courts: Uncertain Messages, Unclear Results, *Lawrence Wrightsman*
- Discussant: *Thomas Grisso*

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11:00 -11:50 a.m.

Discussion Session: Into the Lion's Den: Politics, Science, and Insanity Defense "Reform", *Solomon Fulero, Chair*

Insanity Defense Reform in Ohio, *Solomon Fulero*

Insanity Defense Reform in Massachusetts, *Ira Packer*

Insanity Defense Reform in Arizona, *Maureen O'Connor*

Empirical Perspectives, *Lisa Callahan*

Discussant: *Michael Perlin*

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12:00 -12:50 p.m.

Concurrent Sessions

Poster Session

Award Address: American Academy of Forensic Psychology Distinguished Contribution Award, *J. Reid Meloy, Chair*

Help Wanted: Competent Expert - Knowledge of Ethics, Statutes, Research, Assessment, Standard of Care Essential, *Alan Goldstein*

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1:00 -1:50 p.m.

Award Presentation:

American Board of Professional Psychology (ABPP) Distinguished Service Award.

Violence Risk Assessment: Findings from the MacArthur Research
John Monahan

Please note that this talk is being sponsored by ABPP and therefore will not be listed under Division 41 in the Convention Catalogue. The room assignment will be listed in the catalogue under ABPP



Saturday, August 16, 1997

Continued

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2:00 -2:50 p.m.

Paper Session: Forensic Assessment Issues,
Randy Otto, Chair

Effects of State Organizational Structure on Pre-Trial Competence Assessments, *John Edens, Norman Poythress, Robert Nicholson, and Randy Otto*

Detecting Malingering in an Incarcerated Sample: An Improved Screening Measure, *Margaret Norris and Mary May*

MMPI-2 Scale Elevations of Malingerers in a Forensic Sample, *Elizabeth Weiner and Richard Frederick*

The Predictive Validity of the BPRS in an Incarcerated Population, *Lisa Brown and James Ogloff*

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3:00 -3:50 p.m.

Presidential Address,
Jack Brigham, Chair

The New Phase of Child Witness Research,
Gail Goodman

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4:00-4:50 p.m.

Division 41 Business Meeting

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5:00 -7:00 p.m.

Division 41 Social Hour, co-sponsored by The American Academy of Forensic Psychology

Sunday, August 17, 1997

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8:00-8:50 a.m.

Symposium: Therapeutic Jurisprudence: A Medley of Papers, *Alan Goldberg, Chair*

- Brain Injury, Mental Health and Therapeutic Jurisprudence, *Alan Goldberg*
- Pregnant Substance Abusers and Therapeutic Jurisprudence, *Carrie Erlin*
- Guardianships of the Elderly: Therapeutic Jurisprudence and Least Restrictive Alternatives, *Laurin Eskridge*
- Discussant: *Joel Dvoskin*

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9:00 -9:50 a.m.

Paper Session: Violence Risk Assessment, *Kirk Heilbrun, Chair*

The Relationship Between Confidence and Accuracy in Violence Risk Assessment, *Dale McNiel, David Sandberg, and Renee Binder*

Risk Factors for Juvenile Criminal Recidivism: The Post-Release Community Adjustment of Juvenile Offenders. *Kirk Heilbrun, William Brock, Dennis Waite, Ayonda Lanier, Martin Schmid, Gretchen Witte, Michelle Keeney, Melissa Westendorf, Luis Buinavert, and Michael Shumate*

Validity of the Psychopathy Checklist-Screening Version with Juvenile Offenders, *Melissa Murdock and Richard Rogers*

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10:00 -11:50 a.m.

Symposium: Forensic Assessment of Children: Current Issues in Practice, *Beth Clark, Chair*

- Interviewing Preschoolers: A Test of an Innovative Technique, *Joyce Dorado, and Karen Saywitz*
- Sexual Behavior in Children: Normative and Clinical Contrasts, *William Friedrich, Jennifer Fisher, and Marcia Slattery*
- The Role of Skepticism in Child Maltreatment, *Jeffrey Haugaard*
- The Assessment of Children Involved in Civil Litigation, *Beth Clark*

Sunday, August 17, 1997

Continued

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12:00 -12:50 p.m.

Paper Session : Women in the Criminal Justice System, *Angela Browne, Chair*

Lifetime Prevalence of Physical and Sexual Victimization Among Incarcerated Women, *Angela Browne, Brenda Miller, and Eugene Maguin*

Psychopathy and Recidivism: Generalizing Across Genders, *Randall Salekin, Richard Rogers, Karen Ustad, and Kenneth Sewell*

Examination of MMPI-2 Based Personality Types in Female Forensic Patients, *Judith Thompson, Nancy Wrobel, Gayle Wuttke, Leslie DiMaguila, and Vaishali Shaw*

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1:00 -1:50 p.m.

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2:00-3:50 p.m.

Symposium: Suggestibility in Children's Eyewitness Memory: Controversy and Consensus, *Mitchell Eisen, Chair*

- Improving the Reliability of Children's Reports, *Karen Saywitz*
- Children's Suggestibility: Issues of Reliability and Credibility, *Maggie Bruck*
- The Practical Significance of a Child's Interviewing History: Is There Too Much or Too Little Emphasis on Suggestive Interviews? *Debra Anne Poole*
- Memory Reports of Maltreated Children: Examining the Relations Between Suggestibility and Consistency, *Mitchell Eisen, Gail Goodman, Suzanne Davis, and Jainjain Qin*

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4:00 -4:50 p.m.

Symposium: Involuntary Commitment: Patient Characteristics, Review Panel Decision Making, and Risk Assessment, *James Ogloff, Chair*

- Involuntary Psychiatric Patient Characteristics and Review Panel Decision Making, *James Ogloff and Isabel Grant*
- Violence by Psychiatric Patients: Validity of the HCR-20 Scheme and the PCL-SV, *Kevin Douglas, James Ogloff, and Tonia Nicholls*
- Comparing Risk Assessments with Male and Female Psychiatric Patients: The Utility of the HCR-20 and PCL-SV, *Tonia Nicholls, James Ogloff, and Kevin Douglas*
- Discussant: *Dale McNiel*

Conference Notes



Monday, August 18, 1997

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8:00-9:50 a.m.

Symposium: Validity Issues in Child Custody Evaluation: Conceptual and Empirical Approaches,
Stephan Podrygula, Chair

- The Scientific Basis of Custody Decisions,
Barry Bricklin and Gail Eliot
- Lessons from Research on Evaluation Practices,
Marc Ackerman
- What Constitutes Validity?
Stephan Podrygula
- Discussant: *Bruce Sales*

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10:00-10:50 a.m.

Symposium: A Forensic Analysis of Family Murder: Homicide in the House, *Adam Weisman, Chair*

- Daughters Who Kill Their Mothers,
Adam Weisman
- Parents Killing Children: A Revised Typology of Filicide,
Missi Nadeau
- MMPI-2 Profiles of Filicidal and Homicidal Women,
Geoffrey McKee

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11:00-11:50 a.m.

Award Ceremony: Saleem Shah Award Presentation,
Kirk Heilbrun, Chair
Susan Limber, Award Recipient

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12:00-12:50 p.m.

Symposium: Psychologists' Roles in Employment Discrimination Cases,
Marion Gindes, Chair

- Legal Standards in Employment Discrimination Cases,
Jane Goodman-Delahanty
- Proximate Cause: Psychological Evaluation in Employment Discrimination Cases,
William Foote
- Psychologists' Roles and Ethical Considerations in Employment Discrimination Cases,
Marion Gindes

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1:00- 1:50 p.m.

Invited Address: *Shari Diamond, Chair*

Understanding Child Abuse Claims Involving Religion, Rituals, or Repression: Implications for Psychological Theory,
Bette Bottoms

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2:00 -2:50 p.m.

Symposium: Surviving Your Day in Court: Interplay Between Psychology and Law,
Marion Gindes, Chair

- Ethical Issues Facing Psychologists in Courtrooms,
Donald Bersoff
- APA's Child Custody Guidelines 3 Years Later: Have They Changed Anything?
Marc Ackerman
- What Attorneys Expect from Psychologists in Courtroom Settings,
James Podell
- Discussant: *Marion Gindes*

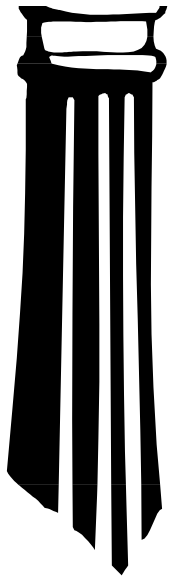
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3:00-3:50 p.m.

Symposium: Internships and Career Opportunities in Law-Psychology, *Lori Butts, Chair*

- Internships in Psychology and Law,
David Glass
- The Federal Judicial Center,
Judith McKenna
- The Florida Mental Health Institute,
Paul Stiles

Student Column



The Student Section has undergone a change in officer positions. For personal reasons, Eileen Mello stepped down as Chair.

Lori Butts, Chair Elect, assumed duties of Chair for this year and will continue as Chair next year.

On a related note, it is time to submit nominations for next year's Student Section officers. Nominees must be graduate students and members of the Student Section. Nominees should have an E-mail address. The terms of office will begin immediately after the 1997 APA convention.

Nominations are being accepted for the following positions:

Chair Elect

This position requires a three year commitment--one year as Chair Elect, one year as Chair, and one year as Past Chair. Therefore, we encourage nominations of students in the early years of their graduate programs. The Chair Elect attends meetings of the Student Section officers and membership at the 1998 AP-LS Biennial convention and the 1998 APA Convention, maintains close contact with the Chair, participates in and develops organizational projects, and learns the tasks

involved in being Chair. As Chair for the term beginning in August 1998, responsibilities include chairing meetings of the Student Section officers and membership at the 1999 APA Convention, attending Executive Committee meetings of AP-LS as an ex-officio member, monitoring progress toward Student Section organization goals, handling correspondence with students, and developing and participating in Student Section projects. As Past Chair, for the term beginning in August 1999, responsibilities include attending meetings, facilitating continuity in the organization, and participating in projects.

Secretary-Treasurer

This position requires a one year commitment. Responsibilities include attending meetings of student officers and student membership at the 1998 AP-LS Biennial Conference and the 1998 APA Convention, maintaining and updating the Student Directory, welcoming new members, developing and monitoring the budget in conjunction with other officers, facilitating correspondence, and participating in projects.

Newsletter Editor

This position requires a one year commitment. Responsibilities include attending meetings of the student officers and student membership at the 1998 AP-LS Biennial Conference and 1998 APA Convention, submitting a student oriented column for each AP-LS Newsletter, and participating in projects.

To nominate someone or yourself, please send the following information by E-mail (or snail mail) to

Lori Butts by May 25, 1997:

- 1) nominees' name, address, phone number, and E-mail address,
- 2) the office for which the person is nominated; and
- 3) a brief paragraph (approximately 150- 200 words) written by the nominee with background information and reasons why they would be a good choice for that particular office.

In addition to officer elections, the Student Section is busy preparing for the 1997 APA Convention. This year, the Student Section will present a symposium on psychology-law internships, nontraditional careers, and future directions for research in law and psychology. We will also host a social hour. We hope that all of you will attend the symposium and the social hour.

Last, but not least, Lori Thomas is updating the student directory. Please contact her with any name or address changes. □

AP-LS Student Officers E-mail Addresses

- Chair, Lori Butts:
lbutts@law.vill.edu
- Past Chair, Eileen Mello:
melloe@servax.fiu.edu
- Secretary-Treasurer, Lori Thomas:
lthomas@law.vill.edu
- Student Newsletter Editor, Trudi Kirk:
tkirk@law.vill.edu

Fellowships and Positions

Clinical/Research Postdoctoral Fellowships

The University of Missouri
St. Louis Center for Trauma Recovery

Beginning September 1, 1997

The Center for Trauma Recovery is affiliated with the Department of Psychology and specializes in research, training, and treatment of posttraumatic stress disorder and related symptomatology in trauma survivors. The fellowship program includes advanced clinical research/training along with seminars, clinical and research supervision, and participation on existing funded research projects on rape and domestic violence. Opportunities are available for supervision in cognitive-behavior therapies, grant writing, assessment, and outcome research. Positions are open for one year with possible renewal. Candidates should have completed doctoral degree requirements, including an APA approved internship. Training or experience in trauma therapy is preferred.

The staff of the Center for Trauma Recovery include Patricia A. Resick, Director, and five research assistant professors. There are also 16 faculty affiliates representing five departments of the University.

The Center is housed in a new building which was designed specifically for Center activities and shared with a child advocacy center. The Center currently has three NIMH research grants, clinic, sponsors a regular colloquium series, and offers an undergraduate certificate in trauma studies. The Department of Psychology has an APA doctoral program in clinical psychology.

The University of Missouri-St. Louis is in the geographical center of the metropolitan area and was built on the rolling hills of a golf course 30 years ago. The student population is 15,000. St. Louis, with a metropolitan area of 2.5 million is a vibrant, comfortable city with midwestern practicality and southern charm. It is home to a world class orchestra, excellent theater, wonderful restaurants, and major league sports. The city has a range of recreational activities including a number of parks, museums, and the zoo, which are all free. St. Louis has a very reasonable cost of living and was recently rated by Money Magazine as one of the most livable cities in the country. Submit letter of interest, vita, and three letters of recommendation to:

Patricia A. Resick
Center for Trauma Recovery
University of Missouri-St. Louis
8001 Natural Bridge Road
St. Louis, MO 63121

Review of applications will begin immediately and will continue until the positions are filled. The University of Missouri-St. Louis is an affirmative action/equal opportunity employer committed to excellence through diversity. □

South Australian Government Chair in Forensic Psychology

University of South Australia

The person appointed to this key role will act as an academic leader and a focus for research in forensic psychology within the school of psychology. A Professor with strengths in both research and applied professional aspects of psychology is sought. A five year contract at \$81,780 per annum is offered.

The School of Psychology was created in 1994 and is still in its formative stages. The Chair in Forensic Psychology will play an active role in the further development of the school.

A leadership role in both undergraduate and post graduate programs is required including the development and support of the Doctor of Psychology which will be inaugurated in 1997. Two lecturers in Forensic Psychology will be appointed to the School in 1997 and supported by the South Australian Government Department of Correctional Services to provide teaching and industry student placement supervision. Applicants should send a detailed curriculum vitae covering their teaching, research and professional practice experience. To obtain further information about the School and this position and to obtain details contact:

Dr. Jacques Metzger, Head of School
Phone 61-8-8302-2956
E-mail j.metzer@unisa.edu.au □

Fellowships and Positions

Substance Abuse Research and Treatment

Continued from page 29

Allegheny University of the Health Sciences Institute for Addictive Disorders

Jerome J. Platt, Director

Invites applications for postdoctoral or junior faculty positions in substance abuse research and treatment, with an emphasis on forensic, criminal justice, and legal policy applications. Opportunities for advancement, including tenure-track appointment, are available for productive individuals. Responsibilities will include participation in the design, conduct, and evaluation of alternative dispositional programs for drug-involved offenders; pre-sentencing and competency evaluations; and assessment, monitoring, and treatment of impaired professionals. Participation is also expected in research, including the writing of scholarly papers and grant proposals on the addictions as part of a highly productive research group. Doctorate in Psychology or related discipline and license eligibility in Pennsylvania is required. Background in criminal justice or law-psychology highly desired. Send vitae, letters of reference, and relevant reprints to:

Douglas B. Marlowe
Institute for Addictive Disorders
Allegheny University of the Health Sciences
Mail Stop 984 Broad & Vine Streets
Philadelphia, PA 19102-1192

An equal opportunity employer. □

Fellows Application Deadlines

If APA keeps to its deadlines, completed applications for fellow status should be received by Jan. 6, 1998. The criteria for fellow status are "unusual and outstanding contributions or performance" in the field of psychology. An applicant must complete a uniform fellow form, which I will send when the applicant requests it. Also send:

- Three letters of reference on APA forms
- A resume with refereed articles marked off
- A statement summarizing professional contributions

It is helpful, but not necessary, that the nominee's referees be fellows if not of the division, then at least of APA. Nominees must hold a doctoral degree, have been an APA member for at least one year, be engaged in the advancement of psychology in any of its aspects, and have at least five years of professional experience after the doctorate. Of course, it is expected that the individual's unusual and outstanding contributions will be in psychology and law.

Murray Levine, E-mail: psylevin@acsu.buffalo.edu, address: Dept. of Psychology, SUNY Buffalo, Buffalo, NY 14260, phone: 716-645-3650, ext. 228, fax: 716-645-3801. □

Graduate Students Receive Dissertation Funding From AAFP

Four psychology graduate students received monetary awards from the American Academy of Forensic Psychology after their applications were reviewed by a panel of three forensic diplomates—Drs. Mark Cunningham, David Shapiro, and Stuart Greenberg. The awards, ranging from \$750 to \$1500, will be used by the students to defray expenses associated with their dissertations.

Jennifer Skeem, a clinical psychology graduate student at the University of Utah, received funding for her dissertation which examines juror decision making in not guilty by reason of insanity cases. Lynne Sullivan, a graduate student at Simon Fraser University, received an award in support of her dissertation examining psychopathy and narcissism. JianJian Qin, of the University of California-Davis, received funding for his dissertation examining reports of childhood sexual abuse. Patricia Zapf, also of Simon Fraser University, received an award that will help defrays costs of her dissertation examining individuals' competencies in both civil and criminal settings.

AAFP currently anticipates that this program, designed to assist graduate students conducting research in the area of law and psychology, will be available in the coming year. The likely application deadline will be in mid-January, 1998. Graduate students who would like more information about this program should look for a call in the next AP-LS newsletter or contact Randy Otto, Florida Mental Health Institute, 13301 Bruce B. Downs Blvd., Tampa, FL 33612 (otto@hal.fmhi.usf.edu). □

President's Column

A Working Mosaic

Continued from page 2

In regard to our publications, the AP-LS flagship journal, Law and Human Behavior, is now under the editorship of Rich Wiener (St. Louis University) and our newsletter is edited by Randy Otto (Florida Mental Health Institute). Ron Roesch (Simon Fraser University) deserves much praise and gratitude for his many years as editor of LHB, as well as for currently serving as editor of our Book Series. The Publications Committee will soon begin to oversee a web page for AP-LS, which is being established by Steve Penrod and several graduate students at the University of Nebraska.

In Closing

I hope this brief summary provides a sense of our division's activities. I want to thank all of the members of the Executive Committee for their help in keeping the division and me on track. What a terrific, cooperative, insightful group! Special thanks to Past-President Kirk Heilbrun (Allegheny University) and Treasurer Jim Ogloff (Simon Fraser University) for making my transition into the presidency a smooth one. I hope members of AP-LS will feel free to contact me (ggoodman@ucdavis.edu) with any ideas, comments, or questions relevant to our mission. □

AAFP
Home Page
<http://www.abfp.com/aafp>

The American Academy of Forensic Psychology now has a home page on the Internet. Included is information about the Diploma in Forensic Psychology, a listing of diplomates and their addresses, and schedules for AAFP continuing education seminars. Interested in taking a look? Pull up <http://www.abfp.com/aafp>. □

Expert Opinion

Threat to Public Safety

Continued from page 5

1.07; 5.01). Unconsented to disclosures are also not unethical if the purpose of disclosure is to protect the client or others from harm (principle 5.05). These principles are echoed in the Specialty Guidelines for Forensic Psychologists (CEGFP, 1991). Guideline IV(A) requires the evaluator to inform the client during the first meeting of factors, like personal relationships, that might produce conflicts of interests. Guideline IV(E) requires the evaluator to disclose information concerning the client's legal rights and the intended uses of the evaluation. The guideline on confidentiality creates, among others, the particular duty to inform clients of the limits to confidentiality (Guideline V(B)).

Thus, given the nature of the referral and the particular circumstances of the case, the evaluator is expected to clearly communicate the options he/she has decided he/she might exercise if the evaluator determines that the client is seriously mentally ill and presents a genuine danger of imminent and possibly deadly harm, whether it be disclosure to family members, to employers (here, the police department), or for purposes of civil commitment. Assuming there is a Tarasoff duty to protect in this particular psychologist's jurisdiction, it would not pertain to threats made to the psychologist (because he/she is aware of the threat) but could pertain to the psychologist's family.

One can question under the facts here, i.e., the officer no longer has his own weapon, the letters are only vaguely threatening, and the calls merely imply but do not explicitly threaten violence, whether any external disclosure is presently necessary. It might be helpful to ask the client to return to the office for a further evaluation specifically related to a risk assessment, (e.g., he could have acquired another gun), and then to possibly refer for medication or suggest voluntary hos-

pitalization. Better yet, it might be appropriate to refer the client to another professional colleague for the risk assessment, given that the original evaluator's judgement may be clouded by his/her now personal involvement in the case (Principles 1.13; 1.20).

In sum, the key is to anticipate problems, based on experience or knowledge of the relevant literature, and to then deal with those problems in the initial consultation by clearly setting out the ground rules of the professional relationship, including what may happen with otherwise confidential information.

References

American Psychological Association. (1992). Ethical principles of psychologists and code of conduct. American Psychologist, 47, 1597-1611.

Committee on Ethical Guidelines for Forensic Psychologists. (1991). Specialty guidelines for forensic psychologists. Law and Human Behavior, 15, 655-665.

"Expert Opinion" is edited by Barry Rosenfeld, 141 East 55th Street, Suite 9-B, New York, NY 10022. Direct inquiries or suggestions for topics to Dr. Rosenfeld at 212-802-8661 or via E-mail at: brosenfeld@cuny.campus.mci.net. □



Minutes

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mittee on Relations with Other Organizations to work with Ron Roesch.

Establishing a Web Page

Steve Penrod contacted AP-LS about establishing a web page and is currently working on it. Several graduate and undergraduate students have been working with him and it is apparently close to being up and running. Ideas for content included lists of predoctoral and postdoctoral programs, internships, tables of content of *LHB*, newsletters, convention programs, links to related sites, syllabi collections, bibliographic collections, contact lists for division officers and committee chairs, funding information, calls for papers, calls for convention submissions, job listings, etc.

The EC noted the importance of having one designated person oversee what is actually put on the web page, i.e., an editor of the web-site. Steve Penrod will be asked if he will be willing to do this. Further inquiry is needed to determine how the web-site will be maintained.

Request by the ABA for Cosponsorship of a Program

The ABA Criminal Justice Section requested cosponsorship of the program The Increasing Use of Psychological Evidence by Criminal Defendants at a CLE annual meeting. Because there are no known faculty for the program at this date and it is unknown as to what the actual content of the program will be, the EC stated a reluctance to engage in cosponsorship at this time. Gail Goodman will follow up with a response requesting that we look for further opportunities for collaboration.

Report of the Standing Committees

Awards and Nominations

Committee Awards The Saleem Shah Award, jointly given by AP-LS and AAFP, will be given to Dr. Susan Lim-

ber who is currently Research Assistant Professor in the Department of Neuropsychiatry and Behavioral Sciences at the University of South Carolina and Assistant Director of the Institute for Families in Society at USC. The award this year is given for early career excellence in policy work related to law and psychology. The committee (Jack Brigham, Gail Goodman, Randy Otto, and Kirk Heilbrun (Chair)) reported that there were several strong candidates and that the committee had a difficult choice.

The EC decided to keep a running announcement in the Newsletter regarding this award to allow for early decision-making to accommodate convention scheduling deadlines.

Motion: Tom Grisso moved and Diane Follingstad seconded the motion that the Saleem Shah Award not allow for self-nominations but require outside nomination. The motion was passed unanimously, pending approval by AAFP. (Kirk Heilbrun will contact AAFP.)

Motion: Jack Brigham moved that the Saleem Shah award extend the definition of early career to six years in order to allow a professional two chances to apply for the award. Ron Roesch seconded the motion. The motion passed unanimously.

Nominations: Kirk Heilbrun presented the Nominations Committee's slate of officers which were voted upon by the EC. The President-Elect nominees are: Pam Casey, Jim Ogloff, and Larry Wrightsman. Nominees for Treasurer are: Bette Bottoms, and Mark Small. The nominees for Member-at-Large are: Brian Cutler, Norman Finkel, and Steve Hart.

Careers and Training Committee

Edie Greene as the chair of this committee submitted a report. 1) Work has begun on the fourth edition of the psychology and law syllabus collection and should be completed sometime Fall 1997. 2) AAFP included a link to her E-mail site resulting in 150 requests for the graduate training programs brochure. She recommends de-

tailed written materials about what the field entails, what courses a student might take and how to anticipate a career in forensic/legal psychology. The graduate programs information will soon be accessible on the AP-LS web-site. 3) One committee member is gathering information on predoctoral and postdoctoral forensic psychology opportunities. 4) The committee is gathering information for listings on the most important/influential scholarly contributions in the field. (The EC recommended that the committee contact AAFP which has already created extensive listings of materials and cases for this purpose.) 5) The videotaped lecture/discussion project has stalled. It is considered that the quality of the project as initially conceptualized is not likely to be able to be produced.

Motion: Due to some unique difficulties with this project and other available options to address this need, Patty Griffin moved and Jim Ogloff seconded that If the money for the videotaping project is not spent by August 1997, the money will be withdrawn and used for other purposes. The motion passed unanimously.

Dissertation Awards Committee

The chair of this committee, Caton Roberts, submitted a report to the EC. Ten dissertations were submitted for the Dissertation Awards which was an increase in submissions over the past several years. An announcement of the decisions will be made at the Business Meeting of AP-LS at the APA Conference in August 1997. Both 1996 and 1997 awards will be conferred at the 1998 Biennial meeting of AP-LS. Recipients will be encouraged to attend to present their work.

Educational Outreach Committee

Sol Fulero is the chairperson of this committee. He has found that part of the responsibilities of this committee has been to help rural areas generate means to be able to afford their part of the funding to bring in a speaker. They are required to cover

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AP-LS NEWS, Spring/Summer 1997



Minutes

Continued from page 32

travel expenses while AP-LS provides an honorarium for the speaker.

Motion: Kirk Heilbrun moved and Sol Fulero seconded the motion that 1) educational outreach in terms of providing honoraria for speakers not be limited to out of the way places for member speakers; and 2) the honorarium be increased from \$350 to \$500 for member speakers. The motion was passed unanimously.

Ethics Committee

This committee is chaired by Steve Golding and Tom Grisso. There was no activity to report. An informational item indicated that APA is reworking its standards on testing and measurement. Bill Foote is trying to have a special section placed within these standards on the use of tests in forensic settings.

Ethnic Minority Affairs Committee

Allen Brown is the committee chairperson. There was no report at this time. The EC recommended that AP-LS invite someone from APA to speak at the Biennial regarding ways to recruit minorities into the division. It was mentioned that Division 9 might also have ideas that could be presented. Gail Goodman will investigate whether APA could send someone to the EC meeting in August to discuss this topic.

Fellows Committee

This committee consists of Murray Levine as the chair, Charles Ewing, Diane Follingstad, Roy Malpass, John Monahan, and Sue White. Some of these committee members reviewed two completed applications. One application has been forwarded to APA with a recommendation to approve. Because Newsletter dates have been out of sync with APA's time table for nominating Fellows, announcements of nominations for Fellow status will be included in every Newsletter.

Grants-in-Aid Committee

Larry Heuer has been the committee chair of a very busy committee. In the

Call for Nominations

Saleem Shah Early Career Award, 1998

Contributions to Law-Psychology Research

Nominations are sought for the Saleem Shah Award, co-sponsored by the American Psychology-Law Society/Division 41 of APA, and the American Academy of Forensic Psychology. (No self-nominations, please.) The Award will be made in 1998 for early career excellence in law-psychology research. Eligible individuals must have received the doctoral degree (or the doctoral degree OR law degree, whichever comes later, if both degrees have been earned) within the last six years. A brief letter, outlining the nominee's contributions in this area, should be sent to:

Kirk Heilbrun
Department of Psychology
Allegheny University of the Health Sciences, MS 626
Broad & Vine Streets
Philadelphia, PA 19102-1192

Fax: 215-762-8625
E-mail: heilbrun@allegheny.edu

Nominees should also send a vita and representative publications or other work samples. The award confers a \$2,000 honorarium and the opportunity to deliver an invited address at the APA Annual Convention. Nominations must be received by **November 1, 1997**.

past year, the committee received 41 proposals for funding. In the fall of 1996, the committee awarded \$2,135 to 7 of the 19 applicants. The awards ranged from \$80 to \$500. The committee felt that the decisions were difficult but that the recipients represented truly outstanding proposals. In March 1997, awards for the Spring 1997 cycle were announced. In this cycle, \$2,286 were awarded to 11 of the 22 applicants, ranging from \$116 to \$250. These proposals were also considered very strong.

The main problem which has occurred due to the number of proposals and small amounts of money able to be awarded to outstanding proposals is the inadequate amount of money available for making appropriate awards. Even with a \$500 cap on

awards, funding is insufficient. Larry Heuer highly recommends greater funding.

Larry Heuer initiated the policy of accepting electronic submissions. This appears to be a popular procedure and he recommends retaining it. He also recommended that at least one committee member have a clinical/forensic background due to half of the proposals pertaining to these issues. Suggestions for modifications of the guidelines for proposal submissions were as follows: 1) include a clear warning that proposal length limitations will be strictly enforced; 2) encourage applicants to discuss the feasibility of the proposed research (including the likelihood of completing

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projects requiring more funding that AP-LS can provide, and the likelihood of completing work requiring the cooperation of other individuals or institutions); and 3) require applicants to indicate that IRB approval has been obtained, or agree that it will be prior to initiating AP-LS funded research. The EC also recommended that an abstract be required from the investigator(s) upon completion of the research.

Motion: Rich Wiener moved and Kirk Heilbrun seconded the motion to recommend that a cap of \$10,000 per year with an individual cap of \$500 per award be designated from the budget for grants-in-aid. The motion was passed unanimously.

Membership Committee

Diane Follingstad reported that the total membership currently is 2,595, with 1,946 members who are APA members, 178 individuals who are members-at-large, and 471 students. This represents an increase of 275 members within a one year period. Since 1990, there has been an increase of 800 individuals who are APA members, and student involvement has almost quadrupled. The membership report raised the issue of whether individuals applying for division membership are screened for meeting basic requirements. Cathy Oslzly will be asked to check to see whether members-at-large meet basic requirements, otherwise applicants require a waiver by 2/3 of the EC. Cathy Oslzly will be also be asked to prepare a list of new members each year for approval at the Annual Business Meeting at the APA convention. Jack Brigham will find out what categories for membership exist in APA to determine whether our categories are in line with those. The purpose for this would be to determine which category high school teachers might fit in. Cathy Oslzly will also be

asked to compile a breakdown of members by gender and race.

Publications Committee

Law and Human Behavior: Richard Wiener is the new editor of *LHB* having officially replaced Ron Roesch on January 1, 1997. He has chosen a new editorial board, three new associate editors (Patricia Frazier, James Ogloff, and Norman Poythress), a book review editor, and an editor for the associate editors. There are also plans for a home page on the Internet for the journal.

From December through March, 41 papers were submitted; 37% pertained to jury studies, 12% to children's issues in the law, 10% to clinical forensic psychology, 10% to eyewitness scholarship, and 32% to issues of jurisprudence or social science in the law (i.e., tort decisions, criminal liability, procedural justice). The current rate of rejection is approximately 79%. There will be a special edition on Gender and the Law in February, 1998 (Editor: Patricia Frazier). The special edition in 1999 will commemorate the 20th Anniversary of *LHB*.

Newsletter: The editor of the Newsletter, Randy Otto, reported that the deadline for the next edition is April 14th. There has been a change in advertising policy with regards to the Newsletter. The postal rate will not be allowed if we advertise in the future. Because advertising revenues would not approximate the increase in postal rate, the decision was made to stop advertising. Randy Otto will propose a stipend to appropriately compensate the production editor of the Newsletter who contributes approximately 40 hours per Newsletter.

Book Series: Ron Roesch reported that there are two books in progress with projected publication dates in 1998. One is by Kirk Heilbrun and Tom Grisso is handling the editing of this one. The other is by Ron Roesch, Steve Hart and Jim Ogloff and should be ready to send to Plenum by May. There are two signed contracts for new books

— one by Jennifer Woolard and Dick Reppucci on Juvenile Accountability (Due January 1998), and the other by Larry Wrightsman on Judicial Decision Making: Is Psychology Relevant? (Due January 1998). There is also one other book proposal under consideration that is expected to result in a contract. Ron Roesch has hopes of signing two other contracts this year.

Relations with Other Organizations Committee

Barry Rosenfeld, the committee chair, has contacted the American Academy of Forensic Sciences (AAFS) which is a multidisciplinary forensic group. It is possible that there could be an ongoing symposium yearly sponsored by AP-LS within AAFS. Since Barry Rosenfeld is the co-chair of the program for the AAFS conference in the coming year, he will plan on organizing such a symposium for the coming convention.

Women in Psychology and Law Committee

Beth Wiggins sent in a report on developments with this committee. During the August APA conference, the Committee's three working groups met in the AP-LS Hospitality Suite. The three groups and their leaders are (1) Children and Law (Bette Bottoms and Margaret Kovera); (2) Feminism and Psychology and Law (Karla Fischer and Anne Pratt); and (3) Proof of Damages in Sexual Harassment Cases (Nancy Baker and Jane Goodman-Delahunty). The Committee also held its traditional Sunday morning breakfast.

The Children and Law group is interested in preparing research position papers on legal issues involving children. The Committee would like to solicit ideas for the papers via the Newsletter. The group contemplates coordinating with Rich Wiener, as chair of the Scientific Review papers, to identify appropriate topics and authors. The group also produced (a) a list of research and travel funding sources, post-doctoral fellowships, and internships that might be useful

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for scholars with interests in children and law; (b) a directory of women interested in collaborating, their addresses and their research interests; and (c) a list of group members willing to serve as mentors to students with similar interests.

The Feminism and Psychology and Law group is interested in gaining a better understanding of (and educating others about) feminist legal and research theories and how they might influence the work of AP-LS members. The group anticipates putting together a related symposium for the next Biennial meeting.

Jane Goodman-Delahunty led an interesting and focused discussion regarding proof of damages in sexual harassment cases. The basis of this discussion would be a good topic for a Newsletter article.

Student Section

Lori Butts has stepped up to fill the role of Chair. A symposium has been organized for the APA Annual Convention on internships in psychology and law, non-traditional careers, and future research in psychology and law. Currently, the student section is finishing their newsletter that will begin the nomination process for our upcoming officers election. They are also finishing the Student Section Directory. There is activity as well to make sure the Biennial conference will offer opportunities for student involvement.

APA Council Representative

Jack Brigham attended APA Council this past year. In December 1996, the Board of Directors approved in principle a proposal for change in the system by which seating on the Council of Representatives is determined. This proposal has been forwarded to APA boards and committees, divisions and state/provincial psychological associations.

Jack Brigham recommended having a professional from our division as the Council Representative who has applied interests if the incoming president of Division 41 does not have applied experience. This would be especially important for attending the Executive Round Table of Practice Divisions which takes place the day before the Leadership Conference.

Tom Grisso will be the new Council Representative.

Third APA-ABA Working Meeting AP-LS Liaison, Jane Goodman-Delahunty, reported on the task force meeting between the two organizations. A theme throughout the meeting was how to get Division 41 more involved in the Task Force activities. Donna Beavers, who works in the APA Office of General Counsel, has been designated the APA Psychology-Law Coordinator. This reflects an increasing awareness and need within APA for resources on psychology-law issues.

Suggestions were that the EC might want to take steps to submit a database responsive to the task force request showing areas of interest or expertise of Division 41 members. In addition, Division 41 might wish to arrange for coordination between COLI and Division 41 in terms of psychology-law presentations for the Biennial, the 1988 APA Annual Conference, or the 1988 IAAP meeting which has a Psychology and Law section. Another suggestion was that the EC might consider ways in which Division 41 is included in COLI and other APA psychology-law activities.

The ABA's Commission on Mental Health & Physical Disability Law has a project intended to assist state courts. This is a Benchbook on Psychiatric and Psychological Evidence and Testimony. The format will probably be a looseleaf binder to facilitate updates on 14-15 specific issues. Division 41 can provide consultation, particularly reviewers in the various areas.

One program quite far in the planning

stage is a two-hour CLE at the ABA San Francisco Meeting on August 1, 1997 on Addictive Disorders (including gambling) scheduled from 8:00-10:00 a.m. A psychology and law CE program will be presented at the APA Convention in Chicago in 1988 by Jim Ogloff.

Bianca Cody-Murphy and Julia Ramos-Grenier are overseeing a project to document and highlight about ten good programs in which psychology and law have cooperated effectively in the past. This working group is looking to hear about projects that have worked well so they can consider including these projects in the monograph.

Proposed Budget for 1997

Over the course of the EC meeting, there were suggested increases in the budget for Newsletter expenses due to paying for the production editor costs and for an increase in grants-in-aid from \$4000 to \$10,000.

Motion: Jim Ogloff moved and Jack Brigham seconded that the proposed budget be accepted for 1997. The motion was passed unanimously. □

AMERICAN PSYCHOLOGY LAW SOCIETY



American Psychology-Law Society • MEMBERSHIP APPLICATION

Division 41 of the American Psychological Association

The American Psychology-Law Society is a division of the American Psychological Association and is comprised of individuals interested in psychology and law issues. AP-LS encourages APA members, graduate and undergraduate students, and persons in related fields to consider membership in the Division. APA membership is not required for membership in the American Psychology-Law Society. **Student memberships are encouraged.** To join, complete the form below and send with dues to: Cathleen Oslzly, Dept. of Psychology, 209 Burnett Hall, Univ. of Nebraska-Lincoln, Lincoln, NE 68588-0308, (E-mail: coslzly@unlinfo.unl.edu).

Name _____ Degree _____

Address _____

City _____

State/Province _____ Country _____ Zip Code _____ - _____

Daytime Phone (____) _____ Internet _____

APA Member ☐ Yes ☐ No Field of Study (e.g., Psych., Soc., Law) _____

Annual Membership Dues: (payable to American Psychology-Law Society)

Regular Member: \$40.00 (includes *Law and Human Behavior Journal*)

Student Member: \$ 6.00 (\$24 with *Law and Human Behavior Journal*)

For back issues of *LHB* contact: Cathleen Oslzly

Address changes

- APA members: send changes to APA Membership Dept., 750 First St. NE, Washington, DC 20002-4242
- AP-LS members, members at large or students: send changes to Ms. Oslzly at the address above or via E-mail

American Psychology-Law Society
Division 41 of the American Psychological Association
13301 Bruce B Downs Blvd. MH-115
Tampa FL 33612-3899

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